Book 5, Chapter 31

Wheeler Family

(Revised)

The Wheeler family is connected to the Thomas family by the marriage of Amanda Wheeler to James Avery Thomas [Chapter 19] on 28 Apr 1842.[1] The Thomas family is connected to the Wingard family [Chapter 1] by the marriage of Fannie Almeda Thomas to John Robert Wingard on 14 November 1890 in Grimes County, Texas.

When I started the study of the Wheeler family I knew very little about them, and apparently no one else did either. The following is information compiled by Charlotte Sandel Beck and presented on her Internet web page.

"Wheeler families were among the earliest settlers in America. It is a difficult family to trace because of their great number. Every state had many Wheelers. It was necessary to begin with our known ancestor, **Amanda Wheeler**, and work her family back into time.

"**Henry H. Wheeler** was born about 1800 in Georgia[a]. There was a Henry Wheeler in the home of Benjamin Wheeler of Warren County, Georgia about 1810[b]. Henry married **Mary Ann Sawyer** in Baldwin County, Georgia on 29 August 1822. Baldwin County is located near the center of the state, near Warren County. Two of Henry and Mary Ann's known children are **Amanda**, born 1827 in Georgia, and John, born about 1823 in Georgia.

"Because families and neighbors often immigrated to new territory together, clues to Henry's movement might be found linked to the movements of other family members. The state of Georgia offered land in various parts of the state to encourage settlement of what had once been Indian lands. In 1827, Henry's name was drawn to receive land in Muscogee County, which is located next to the Alabama line, halfway down the border between the two states.

"The 1830 census for Marengo County, Alabama lists the family of **Henry Wheeler**[c]. Near his entry is a listing for the family of **John Thomas** [Chapter 19]. **John Thomas** appears to have lived in Warren County, Georgia before moving to Alabama. Henry's daughter **Amanda** later married John Thomas' son, **James Avery Thomas**.

"The Thomas family moved to the Mexican territory of Texas, joining Stephen F. Austin's colony of 300 people in 1835[d]. They settled in Montgomery County. The Wheeler family followed them a few years later, arriving before 1842[e]. Montgomery County was divided to form part of Walker and Grimes County in 1860[f].

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[a] There is no basis for this claim that he was born in Georgia. In the 1850 census he said he was born in North Carolina.

[b] See discussion to follow – our Henry H. Wheeler appears to have been the son of Jesse Wheeler of Baldwin County, Georgia.

[c] No! He was listed in Montgomery County, Alabama, in 1830.

[d] No! See the Thomas family history; the Thomas family came to Texas in 1832.

[e] Actually in November 1840.

[f] Grimes County was created in *1846* from Montgomery County.

"**James Avery Thomas** married **Amanda Wheeler** in Montgomery County on 28 April 1842. They settled in Mustang Prairie, Texas. Their family is detailed in the Thomas chapter [Chapter 19]. James died in 1865 and Amanda died in 1896, both in Mustang Prairie, both are buried at Mustang Cemetery.[a]

"Henry's son, John Wheeler, sometimes called Joe[b], also lived in Grimes county, near the home of his sister Amanda. John's wife was Elizabeth Landrum, daughter of Joseph Landrum[c] and Mary Boon. John denied paternity of their daughter Mary Ann so the girl lived with her grandfather, Henry, in the home of her aunt, **Amanda Wheeler Thomas**, as shown in the 1850 Texas Census. In the 1860 census, John's wife, Elizabeth, is living with her sister-in-law, Amanda. Elizabeth is designated as 'Insane' and 'Pauper.' Henry Wheeler is no longer listed on any census, probably having died between 1850 and 1860. John, on a nearby farm, lists his occupation as 'none.' John had a son born in 1852 whom he named James Avery Wheeler, a namesake of John's brother-in-law, **James Avery Thomas**."

We have now learned that some of the even limited information in the above account is in error (e.g., in the 1850 census of Grimes County, Henry H. Wheeler stated he was born in North Carolina (*not in Georgia*), and he was not listed in the 1830 census of Marengo County, Alabama (*but does seem to the one listed in the 1830 census of Montgomery County, Alabama*). But at this time we still do not have much definitive and solid information regarding the roots of our Wheeler family. We do have, though, some information that can only be classified as "circumstantial" that suggests his roots and some of his family members.

Unfortunately, as it will be shown, Henry H. Wheeler traveled across Georgia and Alabama, and managed to reside in counties whose courthouses, with their records, were burned (mainly during the Civil War). Thus, if we are correct in our surmising and theories, we are to be forever working with the handicap of few or no deeds, no wills or probates, etc. – the usual records with which a genealogist reconstructs family relations. That does not mean, however, that we have no records, and what has been found to date will be presented in this chapter.

A *Francis Asbury B. Wheeler* (usually designated in the later records as simply "F.A.B." Wheeler) arrived in the area of Montgomery County known as "Old Dacus" (just northwest of the town of Montgomery) shortly before Henry H. Wheeler made his appearance. Since the area of Old Dacus and Montgomery were where the Thomas, Landrum, Springer, Henson, Gilmore, etc. families – all allied with the Thomas family [Chapter 19] – lived, and since both F.A.B. and Henry H. Wheeler lived there for a while, it was not unreasonable to assume that F.A.B. and Henry H. Wheeler might be related. As it turns out, and as we will attempt to show, it now appears that F.A.B. Wheeler was probably an older brother of Henry H. Wheeler.

It was from following this chain of thought, and from trying to find records for F.A.B. Wheeler, that I was able to find additional records for Henry, and to establish some tentative additional family relations. Now it appears that F.A.B. and Henry H. Wheeler were sons of a Jesse Wheeler who lived in early Baldwin County, Georgia, where both F.A.B. and Henry H. were married. In Baldwin County records are found suggestions of a possible relationship with an Avery Wheeler (who

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[a] It is not known where James Avery Thomas was buried; Amanda, though, *was* buried in Mustang Cemetery.

[b] I have *never* seen him referred to as "Joe" in any primary record.

[c] This Joseph Landrum *is believed* to be the son of John Landrum who died in Clark County, Alabama, before August 1818. John Landrum was the brother of Zachariah Landrum who moved to the Lake Creek Settlement of what was to become Montgomery County, Texas in 1830-1831. See the Landrum discussion in the Thomas family history.

founded Americus, Georgia), and whose genealogy is somewhat better known.[2] Avery Wheeler appears to have been a contemporary of Jesse Wheeler, and Avery was supposedly born in Franklin County, North Carolina, in 1783[a]. Avery first appears in Georgia about the same time that Jesse did – about 1810 – and since Avery's roots point to the area of Franklin County, North Carolina, while Henry H. Wheeler claimed he was born in North Carolina about 1800, the area of Franklin County became the focal point for a search for Avery and **Jesse**, and other possible family connections.

Along the way of this journey of discovery I have debunked a number of legends and lore about F.A.B. Wheeler that have been published repeatedly, and which apparently have absolutely no basis in truth. I will provide as much of this information as makes sense in this chapter to aid the future researcher from becoming de-railed by the F.A.B. Wheeler misinformation and myth(s).

I have also found good circumstantial evidence that besides F.A.B. and Henry H., there were two other sons of Jesse Wheeler: Green(e) E., and Elias H. I will show and discuss the evidence found to date that suggest these relationships below.

It is extremely important for the reader to understand that none of the family relationships suggested below for Henry H. Wheeler's father and siblings has been in any sense of the word proven, nor are they likely to ever be due to the loss of critical records. Subsequent research can only shed additional light onto these postulated relationships – either positively or negatively.

The F.A.B. Wheeler lore:

It is important to our case for F.A.B. Wheeler being a possible brother of Henry H. Wheeler that F.A.B. did not arrive in Texas as early as the legends of F.A.B. assert. If F.A.B. settled in the area of Old Dacus (just about 6 miles northwest of the town of Montgomery) in either 1823, or 1825, as the local legends and histories assert, then it is highly unlikely that he was the brother of Henry H. As will be shown, if F.A.B. arrived in Texas before December 1833, then there would have been another F.A.B. Wheeler who we trace from Georgia to Alabama. Conversely, if F.A.B. Wheeler can be shown to have arrived in Texas at about the same time as Henry H. Wheeler, then a strong case for their being brothers can be made.

In short, circumstantial evidence that F.A.B. Wheeler *did not* arrive in Texas as early as 1823-1825 includes several very key pieces of evidence:

- He was not listed in Stephen F. Austin's own "Register of Families,"[3] and he should have been if he had arrived as early as 1823-1825.
- His name has not been found among any of the (Texas) Pre-Revolutionary records.
- His name does not appear on the 1838 Montgomery County tax list.
- His name *first* appears in Montgomery County records as a witness to a deed in 1839, the same year that he first appears in the county's tax roll. However, his name also appears in the Texas General Land Office records at an earlier date – when he was assigned (bought) ½ of the land grant rights from Anderson Worley on 10 August 1838. This is the earliest date in

[a] The apparent source of the information that Avery Wheeler came from Franklin County, North Carolina, was the book *Remembering Americus, Georgia: Essays on Southern Life*, by Alan Anderson. On page 20 of this book he states (without proof or evidence): "…He [Avery Wheeler] had been born in Franklin County, North Carolina, on November 23, 1783…" Despite this assertion, I have yet to find any evidence of an Avery Wheeler in Franklin County, NC records.

which his name has been found in *any* record as a resident of Texas, and as will be shown below seems to have occurred very soon after his arrival.

- When he applied for a land grant in his own name, he was awarded a grant of 640 acres under a Class III certificate. This last is important, because Class III grants were issued to settlers who arrived *after 1837* (and before 1842). If he had arrived in 1823 (or, indeed, anytime prior to 1835-1836), he would have been eligible for a full league of land (and a labor) under the Mexican land grant system, and he never applied for or received such a grant.
- The ages and birth places of his children as reported in the 1850 census indicate that he was in Georgia and Alabama as documented herein.

The legend states that F.A.B. Wheeler was a large land-owner who gave land to settlers "after his own choosing." On the contrary, when he first appears in the Montgomery County tax rolls in 1839, he owned *no land*. In fact, from Montgomery County and Texas General Land Office records we can prove he did not have clear title to *any* land *until after his death*! And as the records presented herein will show there is no evidence that he ever offered even one acre of the land he controlled to anyone else.

Additional details, with references, will be provided below.

North Carolina beginnings and clues:

A survey of the early census records for North Carolina will reveal that the significant majority of Wheeler families were concentrated in a broad area across the northeastern part of the state, to include Guilford, Granville, Vance, Warren, Wake, Franklin, Nash, Halifax and Northampton Counties. I suspect that most, if not all, of these families had originated in Virginia, because Virginia was teeming with Wheelers, and particularly in the southern counties just north of the Virginia-North Carolina state line.

Any search for Wheeler (and sound-alike names) in this region in the late 1700s is complicated by at least three factors:

- The 1790 and 1800 censuses for Virginia have been lost in their entirety, and the 1790 census for the counties of Orange, Granville, and Caswell in North Carolina have been lost as well.
- Though we are interested in the name "Wheeler," there was another family centered in Halifax and Nash counties, North Carolina, who spelled their name as "Wheeless." The latter used spelling variations of the phonetic "Wheeless" fairly consistently, but such was not always the case with the clerks in North Carolina and Georgia. In both states one will find the phonetic variations of "Wheeler" and "Wheeless" used interchangeably in some records.
- The spelling of both of the phonetic names mentioned above is totally inconsistent. For both forms of the names the first syllable, "Wheel," will be found as "Wheel," "Whel," and "Wheal." While the second syllable of "Wheeler" is often found as "er," "ar," and "or;" the second syllable of "Wheeless" is similarly often found as "ess," "es," "as," "us," and "is." That makes for a lot of combinations that one must search for, especially if using electronic media which insists on your using an exact form of the spelling for which you are searching.

Returning now to what is known about Jesse Wheeler who first appears in a tax list in Baldwin County, Georgia, in 1810… His first son, who is presumed to be the Francis Asbury B. Wheeler discussed above and below, died before the 1850 census was taken. From earlier census information he appears to have been born ca. 1795 (he was listed as 16-26 years old, *but married*, in the 1820 census, and in the 40-50 year-old category in the 1830 Butler County, Alabama, census.) Jesse's apparent second son was our own Henry H. Wheeler, who, in the 1850 census, said he was 50 years old, and born in North Carolina. Jesse's third son was Green E. Wheeler, who, in the 1850 census said he was born in Georgia, and the census information, as well as the information on his grave marker, is consistent: he was born in 1806. If all this information is true (and census information is notoriously unreliable), then we can surmise that Jesse Wheeler came to Georgia from North Carolina between 1800 and 1806.

In the 1820 Baldwin County, Georgia census Jesse Wheeler was listed as over 45 years old, so born 1775, *or before*. In the 1830 Montgomery County, Alabama census, Jesse was listed as 70-80 years old, so, if true, then he was born 1760, or earlier. Jesse apparently died prior to the 1840 census so we have no further data with which to estimate his birth date.

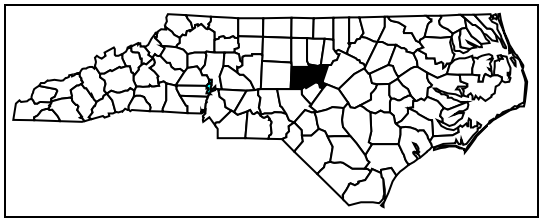

Fig. 1 Chatham County, North Carolina

Armed with the above "facts" (which I will remind my reader may not be facts at all, since they are all derived from various censuses), I began a search of the 1790 & 1800 censuses (and I need to remind my readers that there is no 1790 and 1800 census for the states of Georgia and Virginia). In short, there was no Jesse Wheeler of any spelling variation listed in either North Carolina or South Carolina in 1790. This is most likely to mean that in 1790 Jesse Wheeler was living in some other state (which would most likely be Virginia), or else was counted in the household of a father or brother. In the 1800 census of South Carolina there was no Jesse Wheeler of any of the spelling variations listed either. But in the 1800 census of North Carolina, there is a very promising lead – in Chatham County, North Carolina, where five "Wheelers" (and sound-alikes) were found:

1800 Census, Chatham County, North Carolina

	Males					Females				
Head of Household	0-10	10-15	15-25	25-45	45+	0-10	10-15	15-25	25-45	45+
Isaac Whelas[4]	3			1		2			1	
John Wheler[5]	1			1		1			1	
Jessee Wheler[6] [a]	2			1						
Dred Wheler[7]	1	1		1		1	1		1	
Hardy Wheless[8]	1		2	1		2		2		1

[**Comment:** In the course of this study I encountered two large Wheeler families that will receive no further attention. One was a large family of Quakers who lived among the Quaker communities in Guilford and Orange (in what later became Alamance) counties. Quaker records for North Carolina are excellent and there were no Jesses among them. The other large family was located in Northampton County, and some members of this family moved to Granville County. A book has been published that documents what is known about this Northampton (and Granville) County family by Frances Scoggins Wheeler titled ***The Wheelers of Granville County, North Carolina: their***

[a] John and Jesse Wheeler were listed in adjacent households; Dred Wheeler was listed on the next page.

antecedents and descendants. (We encounter this family in the Curry family history – Chapter 5). There is no Jesse who could be ours named in Ms. Wheeler's book. And I have been in correspondence with Ms. Wheeler to further explore the possibility; she affirmed that she had not encountered a Jesse in the time period of interest among the Northampton and Granville family of Wheelers.]

Isaac "Whelas"/"Wheelus" was living in Chatham County in 1790:

1790 census of Chatham County, North Carolina

Head of Household	Over 16	Less than 16	Females	Other	Slaves
Isaac Wheelus[9]	1		1		2

…but all of the others in the 1800 Chatham County census were relative "newcomers."

It should be noticed that Jesse Wheeler was in the 26-45 year-old age category, which fits the profile developed above that he was probably born in 1760, or before (1800 – 45 = 1755). He is listed with two sons, who *could be* Francis Asbury B. and Henry H. Wheeler. And he is listed with no wife, who might be hypothesized to have died with the birth of Henry H. Wheeler, who, recall, said he was born in North Carolina *about* 1800. These few facts, *plus* the fact that he was not found in the 1810 North Carolina census (because he had moved to Georgia between 1800 & 1806?) certainly fits the profile of what we think we know about Jesse Wheeler of Baldwin County, Georgia.

In the 1800 Chatham County census, Jesse and John "Wheler" were listed as adjacent names, meaning that they probably lived on adjacent property and were almost certainly closely related. "Dred Wheler" was listed a few names below Jesse and John (or to be more precise, at the top of the next page), which is another fairly strong indicator that he was closely related to John and Jesse (e.g., brothers, since they were all listed in the same age category). Both Isaac and Hardy "*Whelas*" were listed considerably separated from John, Jesse and Dred "Wheler," indicating that if they were related, they were probably not closely related. Exploring those five names further…

The John Wheeler *family* was listed as still living in Chatham County in the 1810 census:

1810 Census, Chatham County, North Carolina

	Males					Females				
Head of Household	0-10	10-15	15-25	25-45	45+	0-10	10-15	15-25	25-45	45+
John Wheeler[10]	1	1	1			3		1		1

…but it should be noticed that John Wheeler, himself, was not counted, meaning, I think, that he had probably died between 1800-1810.

The name "Dred," I have learned, was almost certainly a nickname or shortened form of "Etheldred," a not-uncommon name of the time in both Virginia and North Carolina, and an ancient (from Medieval times) English name. No "Dred" Wheeler can be found in the 1810, or later, North Carolina census, but an "Etheldred" Wheeler can (the only "Dred" or "Etheldred" Wheeler in the 1810 North Carolina census): he was listed in Iredell County, North Carolina as:

1810 Census, Iredell County, North Carolina

	Males					Females				
Head of Household	0-10	10-15	15-25	25-45	45+	0-10	10-15	15-25	25-45	45+
Etheldred Wheeler[11]				1		1		1	1	

By 1820 Etheldred Wheeler, apparently formerly of Iredell County, had moved to Pulaski County, Kentucky, where he is listed in that year's census. Descendants of this family have estimated that Etheldred/Dred Wheeler was born about 1770-1780 in North Carolina, which would be consistent with a younger brother of Jesse Wheeler.

We will return to John, Jesse, and Dred "Wheler" later, but I think it is important to explore the other two names in the 1800 Chatham County census first. When I first found Jesse Wheeler named in the 1800 Chatham County census, I tried to find other Chatham County records – deed, court, marriage, etc. – that might name him. I did not find any county record that named him, John, or Dred before, or after, their appearances in the 1800 census, but did find some interesting, and revealing information about the *Wheeless* clan in early Chatham County, e.g.:

> [Chatham] "3 Aug 1774 – Jacob Rogers to Bias Rogers – 50 pds. – 200 a. – being a part of a deed of 400 a. granted to the said Jacob Rogers by *John Wheelr's* by a deed bearing date the 21 Feb 1766 and the said Bias Rogers to have the lower half of the said tract – on the East side of New Hope Creek.
> Wit: Elisha Cain Jacob Rogers
> Isam Rogers"[12]

> [Chatham] "At an inferior Court of pleas and quarter Sessions begun and held for the County afores'd at the Courthouse on the second Tuesday in May, to wit the 9th day of the same month in the year of our Lord one thousand Seven and Seventy five …. The Will of William Byrd dec'd Exhibited and proved by *John Wheelis*."[13]

> [Chatham] "21 June 177? [6?] (tight binding) – William Gamblin to *John Wheleps*[a] – 90 pds. – 100 a. on the South side of Rockey River.
> Wit: John Byrd Wm. Gamblin
> Vincent Self Susannah (X) Gamblin
> Susannah examined by Thomas Hill Esqr."[14]

> [Chatham] "13 May 1777 … Deed from William Gamblin and wife to *John Wheelis* proved by Vincent Self and feme relinq'd before Thomas Hill Esq'r."[15]

> [Chatham] "(no date) [ca. Feb 1778] Vincent Self enters 200 ac at Little Algear Br of Rocky R; border: runs S to the head of Pine Cr. down the creek to join *Jno Whilis* (or *Wheless*), & to the beginning; includes the improvement Stewart Ginn lives on; warrant issued May 20; grant delivered."[16]

> [Chatham] "20 Aug 1779 – State of North Carolina to Vincent Self – 50 sh. for every 100 a. – 200 a. on the Little Algear a branch that makes into Rockey River – joins *John Wheeler* and Pones Creek.
> J. Glasgow, Sec. Rd. Caswell"[17]

The reader should note in the above record the sometimes interchangeability of the name "Wheless" (and its many variations) with "Wheeler."

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[a] In the old style of writing a "p" meant a double "s," i.e., I suspect that the name is, in reality, "Wheless." Further evidence that this is, in fact, John Wheeles/Wheeler are the two witnesses: John Byrd and Vincent Self.

[Chatham] "22 Jan 1780 – Moses Gyn to Vinson Selph – 500 pds. – 100 a. on the North Side of Rockey River – joins P. Gyn, *Wheless* line – it being part of a survey of land which Moses Gyn obtained a deed for of my Lord Cartrits Agents.
Wit: *John Wheless* Moses (M) Gyn
Drusillah (X) Gyn"[18]

[Chatham] "3 Feb 1780 *John Wheeles* enters 112 (written over 100) ac on N. side of Pones cr; border: Kennon, Rutherford, his own line, & Wm. Sanders; warrant issued."[19]

The above record is the last one found that names John "Wheeles" in Chatham County and in which I can be certain he was still living. He probably died sometime in 1780, because of the following:

[Chatham] "At an Inferior Court of pleas & quarter Sessions begun and held for the County of Chatham at the Courthouse therein on the Second monday in February, being the Eleventh day of the same month and in the Year of Our Lord One thousand Seven hundred and Eighty Two … The Will of Moses Gin proved by *Hanner Whealar*."[20]

I am guessing that "Hanner" (/Hannah) "Whealar" was the wife, or widow, of John Wheeless.

Though the following two records are dated after John Wheeless' surmised death, neither of the following necessarily indicate that he was still alive:

[Chatham] "3 Sep 1782 – Bias Rogers to David Brumble – 50 pds. Specie – 220 a. – it being part of a deed of 400 a. granted to Jacob Rogers by *John Whealus* by a deed bearing date 21 Feb 1766[a] the part thereof being conveyed from Jacob Rogers unto Bias Rogers by a deed bearing date 3 Aug 1774 and the said David Brumble to have the lower part of the said tract – on the East side of Newhope Creek – also 8 a. on the South side of the same it being a parcel of land said Bias Rogers bought of John Hatley.
Wit: James Bell Bias Rogers
William Brown Mason (X) Rogers
"her mark"
feme relinquished before Elisah Cain Esqr."[21]

[Chatham] "23 Oct 1782 – State of North Carolina to *John Whelas* – 50 sh. for every 100 a. – 112 a. on the North side of Pones Creek – joins Selfs line
J. Glasgow Sec. Alex Martin"[22]

After this point in time, John Wheeless is never mentioned again in the context of still being alive, but the Isaac Wheeless found in the 1790 and 1800 Chatham County censuses emerges on his own. I am assuming that Isaac Wheeless was, therefore, most likely a son of John Wheeless.

[Chatham] "8 July 1785 – Aaron Braan to *Isaac Wheless* – 500 pds. Specie – 150 a. – joins Thomas Bryan.
Wit: Amos Hurley Aaron Bryan
Anna (X) Hurley"[23]

[Chatham] "9 Aug 1790 … *Isaace Wheelas* have leave to build a Watter Grist Mill on the Waters of Rockey River on his own Lands."[24]

[Chatham] "Deed from Vincent Self to *Isaac Wheless*. Indenture made this 11th day of November 1794, between Vincent Self of Anson County, and *Isaac Wheless* of Chatham county, for and in consideration of

[a] Chatham County was created in 1771 from Orange County, so the original deed of sale, if it still exists, would have been found in Orange County records – most of which were destroyed during the Revolution.

the sum of one hundred pounds to him in hand pad, for a tract of land lying on the waters of Rockey River, beginning on *John Wheless*' line, then east on the east side of Jones' Creek.
Test:
John Hurley Vincent Self
Henry (X) May"[25]

So who was John Wheeless, and his son Isaac? I think John Wheeless was a son of Joseph Wheeless, one of the two brothers – Joseph and Benjamin – who apparently migrated down to Edgecombe County (and that part that later was created into Halifax and Nash counties), North Carolina from Virginia in the 1740s.

[Edgecombe] "Hopkins Wilder (co. not identified) to *Benjamin Wheelis* (co. not identified) 31 Jan 1746/7. 30 pounds. 200 acres on both sides of Swift creek, joining a deep branch all houses, orchards, gardens, etc. being the lower part of a grant to me. Wit: John Phillip Shelley, John Watson X his mark. Reg. Edge. Co. Feb. Ct. 1746[/7] R. Forster C. Ct."[26]

[Edgecombe] "John Battle of Surry Co., Va. to *Joseph Wheelis* of Edge. Co. 25 Jan 1748/9. 45 pounds current money of Va. 236 acres on Rocky swamp formerly called Rodger's creek, joining Rodgers (now Edwards), Cattail branch and the swamp. Wit: Wallis Jones, Robert Rives Jones, Thomas Spell. Reg. Edge. Co. Feb. Ct. 1748[/9]. B. Wynns C. Ct."[27]

[Edgecombe] "John Odom of Edge. Co. to Francis Drake of Edge. Co. 1 Nov 1754 25 pounds Va. money 431 acres on the north side of Rocky swamp joining Edwards and the swamp as by deed to the sd. Odom 28 Oct 1754. Wit: Edward Collins, *Joseph Wheliss*, *John Wheless*. Reg. Edge. Co. Nov. Ct. 1754. B. Wynns C. Ct."[28]

Joseph Wheeless Sr. died in Halifax County. His will, dated 1761, confirms that he had a son named John, and I have been unable to find another John Wheeless in Edgecombe or Halifax County records prior to the appearance of the John Wheeless, above, in Orange/Chatham County records, except for the deed immediately above which associates John Wheeless with Joseph Wheeless.

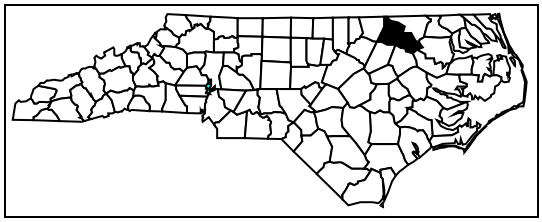
Fig. 2 Halifax County, North Carolina

"North Carolina In the Name of God
Halifax County AMEN
"I *Joseph Whelas* of this sd province and County Being sick and Weak of Body but of Perfect mind and memory Blessed be God for the same yet bearing in Remberbrance the uncertainty of this Life and that there is a time appointed for all men once to Die do in Order there unto disclaim this to be make my Last Will and Testament, first and principally I commend my soul to Almighty God, who gave it my Body to be Decently intired at the Discretion of my Executor. thereafter mentioned and as for what Worldly Goods it hath pleased Almighty God to Bestow on me in this Life I Give Demise and bequeath in manner and form following:
Inprimis I Give and Bequeath to my loving son *John Whealass* one heifer, one narrow ox and a parcil of Old Casks —
Item, I Give to my son *James* one White Heifter and one pewter Dish and three Plates; —
Item, I Give and Bequeath to my Daughter *Elizabeth* one cow and calf and a Yearling one pewter dish and two Basens, one Linnen wheel two Woollen Do. One pair of cards and a loom with a box iron and heatirs[?], and also, one feather Bed and Furniture -
Item, My further Will and Desire is that my son *Joseph Wheelass* may have and enjoy all the remaining part of my Estate which is not therein mentioned, to him and his heir forever;

Lastly I nominate Constitute and Appoint my sd Son *Joseph Wheelass* to the whole and sole Executor of this my Last Will + Testament; In Witness whereof I have hereunto set my hand + seal this sixteenth day of April 1761._ _ _ _ _

Test His
Mattw. Duan, May [X] Dockirill *Joseph*
Wheelass (Seal)
Mark

"Halifax County, do— June Court 1761
"This Will was Exhibited in open Court on Oath and Proved by the Oath of Mary Dockerill one of the Subscribing Witnesses there to and at the same time, *Joseph Wheelass* the Executor therein Named came into Court and was Duly Qualified according to Law. And on Motion Ordered to be Recorded.
Test J. Moutfort CC"[29]

The 1786 Halifax County will of Joseph Wheeless Jr. is also important and interesting, because it tells us that Joseph Wheeless Jr. had a son named Hardy Wheeless.

[Halifax]
"In the Name of God Amen. I *Joseph Wheeless* of Halifax County in the State of North Carolina, Being thro' the abundent Mercy & Goodness of God, tho weak in Body, yet of a sound and perfect understanding and Memory, Do constitute this my last Will & Testament, and desire it to be receiv'd by all as such.
"Imprimus. I most humbly bequeath my Soul to God my Maker, beseeching his most Gracious acceptance of it, thro the all sufficient Merit and Mediation of my most Compassionate Redeemer, Jesus Christ, who gave himself to be an Atonement for my Sins, and is able to save to the utmost all that comes to him, seeing he ever liveth to make Intercession for them, and who I trust will not Reject me a returning penitent Sinner when I come to him for Mercy. In this hope & Confidence, I render up my Soul with comfort, humbly Beseeching the most blessed & Glorious Trinity), One God most holy, most merciful, and Gracious, to prepare me for the time of my Dissolution. And then to take me to himself, into that peace & rest, and incomparable felicity which he has prepared for those that Love & fear his Holy Name. Amen. Blessed be God.
"prim I give my body to the earth from whence it was taken, in full assurance of its Resurrection from thence at the last Day, as for my Burial I desire it may be decent without pomp or state at the discretion of my Dear Wife, and my Executrix hereafter named, and after my lawful and just Debts are paid off: I give & bequeath as follows:
"Item I give and Bequeath to my daughter *Christian Bruce* One pound specie, to her & her heirs for ever.
"Item I give and Bequeath to my Son *Hardy Wheeles* One pound specie to him & his heir for ever.
"Item I give & bequeath to my son *Sion Wheeless* one pound Specie to him and his heirs forever.
"I lend to my beloved Wife *Molley Wheeless* all my real & personal Estate During her natural Life, or Widowhood, and after my widow's Death or marriage, I give & Bequeath all my Personal & Real Estate to my Beloved Children begotten by *Molley Wheeless*[a], to them, their Heirs or Assigns forever – In Witness whereof, I have hereunto set my Hand and Seal the fourteenth day of November in the Year of our lord 1786.

Test John [X] Jones Joseph Wheeless (Seal)
Test Rhoda [X] Harthorn
Thomas Sanlwell

"Halifax County - February Sessions 1787. Then this Will was Exhibited in Open Court, and duly proved by the Oath of John Jones and Rhoda Hathhorn two of the Subscribing Witnesses thereto, & on Motion ordered to be Recorded. Whereupon *Molly Wheeless* qualified as Executrix thereunto.
Test. Wm Worthery Cct"[30]

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[a] This is interesting wording. By naming only the children "begotten by Molly Wheeless" I think he is suggesting that he had other children by an earlier first wife. Others have made the same conclusion.

Despite the assertion of many descendants of Joseph and Benjamin Wheeless (both Sr. and Jr.) that those were the only two Wheeless family lines in North Carolina, the following record strongly suggests that there was a *third* Joseph Wheeless, who *did* leave a will – though not necessarily in Halifax County, North Carolina. The date of the following estate division is reasonable for children of Joseph Wheeler, Jr. (above), but the list of devisees is not.

> [Halifax] "Division of the land of *Joseph Wheeles* dec'd agreeable to his will. *Samuel Wheeles*'s 55 acres, joining Tristram Drake, Rockey Swamp. *Henry Wheeles*'s 55 acres, joining Drake. *Kinchen Wheeles*'s 55 acres, joining Rocky Swamp. *Elizbeth Wheeles*' 56 acres, joining Rocky Swamp. *James Wheeles*' 56 acres, joining Rocky Swamp, Spell. *Peggy Wheeles*'s 55 acres, joining Tristram Drave, Beaverdam Branch, Butts. 11 May 1793. Mat C. Whitaker, James Judge, John Wright. John Branch, J.P. May Ct 1793. CC: L. Long"[31]

Whoever the above Joseph Wheeless was, and however the devisees in the above division of land were related to him (they seem to have been children, since their shares were all equal), I will resist the temptation to solve the riddle of how the above Joseph Wheeless fit in since none of the children(?) appear to be of any interest to us.

No will or date-of-death for Benjamin Wheeless Sr., presumed brother of Joseph Wheeless Sr., above, has been found, but the evidence that he had sons Benjamin (Jr.), Isham and William is found in the following records:

> [Edgecombe] "*Benja. Wheless, Senr.* of Edgecombe Co. to *Benja. Wheless, Junr.* of same, 6 July 1765, for £11 Virginia money a tract of 172 acres on the north bank of Swift Creek adjoining John Philip Shelley, it being part of a tract that *Benja. Wheless* bought of Thos. Hill by deed bearing date 5 April 1762. Wit: Thos. Mann, James Drake."[32]

> [Edgecombe] "*Benjamin Wheless, Senr.* to Edgecombe Co. to *Isham Wheless* of same, 12 Nov 1767, for £5 Virginia money a tract of 200 acres on the south bank of Swift Creek adjoining said *Benjamin Wheless, Senr.* Wit: *Benjamin Wheless*, Sam. Davis."[33]

> [Edgecombe] "*Benjamin Wheless, Senr.* of Edgecombe Co. to his son, *William Wheless*, 27 Feb 1770, for love and affection the 250 acre plantation whereon said *Benjamin Wheless, Senr.* then dwelled. Wit: Hardy Griffin, Arthur Arrington, Junr."[34]

Benjamin Wheeless Jr. died in 1772 as proved by the following will. It should be noticed that he had a son named Jesse!

> [Edgecombe] "*Wheeless, Benjamin*. 22 Nov 1772. Nov Ct. 1772. Wife: *Mildred*, large chest, use of plantation (widowhood), 5 cows, her choice, horse and £25 Proc. money; son: *Amos*, Rifle gun, now called his, my Blacksmith tools; residue divided among chil: if child wife now goes with, male or female, shall have share alike, with all other chil: *Amos, William,* **Jesse** and *Sarah Wheeless*. Exr: *Isam Wheeless*, Mr. James Drake, Senr. Wit: Thos. Mann, Joseph Hobdy, *William Wheeless*."[35]

Almost nothing more is known about the son, Jesse Wheeless, named in the above will, except for the fact that he had apparently died *prior to 1798*, as evidenced by the following record in which he is *not* named as one of the heirs of Benjamin Wheeless:

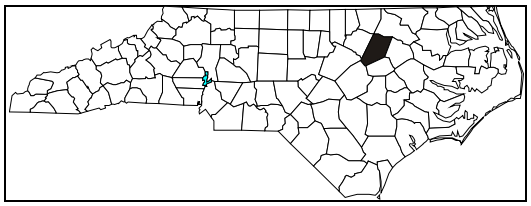

Fig. 3 Nash County, North Carolina

[Nash] "November Court 1798 … *Amos Wheless, William Wheless*, Heirs of *Benja Wheless*[a], came into Court & acknowledged that they are perfectly satisifyed with the Division of the Land *Benjamin Wheless*, Died, Seized, of agreeable to the Return exhibited at this term with the plan thereunto Satisified & Denton Mann, Esqr. acknowledged before Redmun Bunn, Esqr, His assent to the above Division.

"A Deed of sale from *Wm Wheless* to *Amos Wheless* ackd."[36]

I am now convinced that despite the names "Wheeless" and "Wheeler" being used interchangeably (with the many variations in the spellings) in many records our Jesse Wheeler was *not* a Wheeless. However, it is also interesting to note that wherever I found Wheelers who might be related to our family I also found members of the Wheeless clan, and not just in Chatham County records; for example, a Hardy Wheeless also appears in Franklin and Wake County, North Carolina records, where our Wheeler family is also found (see discussion to follow), and *a* Hardy Wheeless[b] also appears in the 1820 census of Putnam County, Georgia, adjacent to Baldwin County. So, though I am convinced our Jesse Wheeler is not a descendant of either Joseph Sr. or Benjamin Wheeless Sr. the fact that members of the two clans appear in relatively close proximity to each other over a long period of time, and in a wide geographic area, does suggest to me that they may have been related somehow – perhaps in Virginia?

Returning now to the John, Jesse and Dred Wheeler found in the 1800 Chatham County census, a fourth name – Joseph Wheeler – has emerged in my search that may be another relation. The first records I have found that name the Joseph Wheeler who I suspect *might be* related to our Jesse Wheeler are the following:

> [Wake] "At An ~~Inferior~~ Court of ~~Pleas~~ and ~~Quarter~~ Sessions of the Peace begun and held for the County of Wake at the Court House in Wake on Tuesday the third day of June in the Year of our Lord 1777 and in the first Year of our Independence … A Deed from Joseph Perry to *Joseph Whealer* was in Open Court proved by the Oath of Henry Baker a Subscribing Witness thereto and Ordered to be Registered."[37]

As I will attempt to show, Joseph Wheeler (Sr. and Jr.) were found in both Wake and Franklin County records, indicating perhaps, that they lived very near the Wake-Franklin County line (the counties are adjacent). The significance of finding John Martin's name associated with Joseph Wheeler (in the following record) will become apparent in the discussion to follow.

> [Bute[c]]

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a This record appears to be very significant. I refer the reader to the 1772 will of Benjamin Wheeless in which he names his three sons as Amos, William and Jesse. *Jesse*, is noticeably absent in this estate settlement record, almost certainly proving that he had died between 1772 and 1798.

b The Putnam County, Georgia Hardy Wheeless *may be* the son of Joseph Sr.'s son, William Wheeless.

c Bute County was created in 1764 from Granville County. It was later, in 1779, divided into Warren and Franklin counties, and Bute, itself, was made extinct.

"Disputed W Issued agreeable to Order Court 2d Feby 1779	Joseph Norriss enters 250 A on south side of little Crooked Creek[a] beg. at Jno. Martins[b] corner … county line, *Joseph Whealers* line, including his imprt. 27 May 1778 Jos Norriss
"Disputed Lost	Gibson Martin enters 300 A on No side of little Crucked Creek, John Martin's line, Jos Norriss's line, Kirby Sander's line, including his Improvement. 27 May 1778 Gibson Martin"[38]

Joseph Wheeler (Sr.) apparently had a son named Joseph (Jr.) was evidenced by the following record:

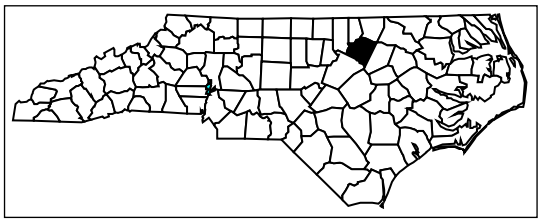

Fig. 4 Franklin County, North Carolina

[Franklin] "June Court 1787 … Ordered that the following Hands be added to those under Kirby sanders (To Witt) *Jos Wheeler*, *Jos Wheeler Junr*, Stephen Price, Phill Pride, Moses Upchurch, Thos Gay."[39]

[Franklin] "September Court 1787 … Order'd that the hands of John Weathers, Joseph Rogers, John Martin Jr. & *Joseph Wheeler Senr* be orded to work on the road under Bridges Arrendell."[40]

The 1790 census of Franklin County lists three Wheelers all on the same page and with only a few names separating the three:

1790 census, Franklin County, North Carolina:[41]

Head of Household	Over 16	Less than 16	Females	Other	Slaves
Wheler, John	1	2	3		
Wheelor, Joseph Jr.	2	1	3		
Wheelor, Joseph	1	2	4		

Since neither Jesse nor Dred/Etheldred Wheeler are found in the 1790 census, it just might be possible that Joseph Wheeler Jr. was the older brother of Jesse and Dred, and that Jesse was the second male listed as over 16 in Joseph Wheeler Jr.'s household, and that Dred was one of the less-than-16 sons listed in the Joseph Wheeler Sr. household (which would suggest that Dred was, in actuality, born a little later than 1770). The Benjamin Wheeler found in subsequent Franklin County records (below) *might* be the second less-than-16 son listed in Joseph Sr.'s household.[c]

[Nash] "Abraham Puckett of Nash Co, NC to *Joseph Wheeler Jun*[r] of Franklin Co, NC, 8 Feb 1792, for 72 pounds Virginia money, a certain tract or parcel of land on the North side of Turkey Creek, it being all the land lying on the North side of Turkey Creek in the tract of land that Peleg Rogers obtained patten under Earl Granville, by computation 170 acres more or less. [no further description stated.] Abraham Puckett. Wit: John Reynolds, George Pace, Joseph Mosley. Nash County August Term 1792. W[m] Hall CC. W[m] S. Mearns PR."[42]

[Franklin] "Sale of estate of Hezekiah Massey dec'd. Buyers were Richard Massey, Martha Massey, Thomas Ray, John Williams, Thomas Ingram, *Joseph Whealer Jr.*, James Mullins, Richard Upchurch, Bud Lee,

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a Crooked Creek flows generally west to east across the southern part of present-day Franklin County to empty into the Tar River. I cannot find a *Little* Crooked Creek on a modern topographical map, but the major tributary of Crooked Creek is called Norris Creek, and I suspect that this was what was formerly called *Little* Crooked Creek.

b John Wheeler and Jesse Wheeler were witnesses to John Martin's 1794 Franklin County Will.

c There are other Wheelers named – mostly in later records – in both Wake and Franklin counties. But I found nothing to indicate they were closely associated with the names in which we are interested. There is always a possibility, particularly with post-1800 records, that some of these "other" Wheelers were sons of Joseph Wheeler, Jr.

Benja. Bun, Benjamin Bun, William Walker, James Bolton, Nathan Bolton, Miles Prewitt, Moses Upchurch, Robert Chamlee, Robert Rutherford, James Upchurch, Nathan Striclan, Fedrick Smith, James Campbell, Jesse Dinkens, David Bun, Isaac Stricklin. March Court, 1792."[43]

Jumping ahead to the 1800 census of Wake County (there were no Wheelers, or sound-alikes, in the 1800 Franklin County census), the following Wheelers were listed:

	Males					Females				
Head of Household	0-10	10-15	15-25	25-45	45+	0-10	10-15	15-25	25-45	45+
Wheeler, John	2	1			1	1	1	1		1
Wheeler, Joseph	1	2			1	3			1	
Wheeler, Benjamin	1			1		2			1	
Wheeler, John			1	1			1		1	

Just who the two John Wheelers in the 1800 Wake County census were is unknown, and this makes the John "Wheler" in the 1790 Franklin County census debatable as well. We now know that "our" John, Jesse and Dred Wheeler had moved to Chatham County by 1800 and where they were counted on that county's census. Perhaps the most important observation, though, is that apparently Joseph Wheeler Sr. had died between 1790 and 1800, which makes it possible that the following record names the man who had previously been Joseph Wheeler, Jr.:

[Nash] "*Joseph Wheler* of Franklin Co, NC to Ezekiel Dance of Chesterfield Co, Virginia, 3 May 1793, for 20 pounds current money of Virginia, a certain track or parcel of land lying and being in the County of Nash on the North side of Turkey Creek[a], be all the land lying on the North side of Turkey Creek in the track of land Peley Rogers obtain'd and or Earl Granvill by computation 120 acres more or less; Beginning at Turkey Creek on George Fore line, thence along the s^{d} line to John Morgan's line, thence along the said line to Ezekiel Dance line, thence along the s^{d} line to Turkey Creek; thence down the Creek to the place begun at. *Joseph (x) Wheler*. Wit: Wm Morre, Etheldread Dance. Nash County May Term 1798. The within Deed was in open Court duly prov'd by the oath of Etheldread Dance & ordered to be Registered. Wm Hall CC. And is registered. W. S. Mearns Reg^{r}."[44]

It should be noticed that the above deed was recorded in Nash County, where the Benjamin Wheeless family was located. It also invokes the name John Morgan, the significance of which will shortly become very apparent.

Benjamin Wheeler's name emerged in the Franklin County records with the following:

[Franklin] "Will of James Pirce. To wife Mary Pirce 'all my lands' during her widowhood or natural life, reserving 100 acres for the use of my father and mother during their lifetimes 'and then to be taken in with the rest of the land.' To wife also all horses, cattle, hogs, sheep, household goods during her life or widowhood; afterward to be divided equally among all the children: Bedey, Bitsey, Penney, Patsey, and Wille, 'except my land and that to be for my son Willie Pirce.' Executor: Thomas Ray. 7 February 1794. His mark. Witnessed: *Benjamin Wheler*, Richard Upchurch, William Ray. Undated."[45]

And finally we come to two of the most important Franklin County records:

[Franklin] "John (x) Martin 16 Feb 1794 (no probate date)

[a] There are *two* Turkey Creeks in *both* Franklin and Nash counties. Both have their headwaters in Franklin County, and both flow across the Franklin-Nash County Line. I suspect that the one referred to in this deed is the southern-most one, and is related to the disputed 1779 Bute County land claim provided above.

"'weak in body'
"To my son John – all my land on the south side of Flat Rock Creek. To Gibson Pearce – 1 filly, 1 cow & calf. To my wife Elizabeth – all my land on the north side of Flat Rock Creek, with the remainder of my estate.
Ex. my wife Elizabeth Martin
Wit. Jacob Heartsfield, **Jesse (x) Wheeler**, *John (x) Wheeler*."[46]

[Franklin] "James Pearce
"8 Mar 1794. Inventory by Thomas (x) Ray admr.
"21 Mar 1794. Sale of estate of James Pirce dec'd by Thomas (x) Ray admr. Buyers:

James Butler	John Crawley	Dread Jones	Mary Pirce
Richd Pirce	James Sanders		

"Sale 20 Dec 1794. Additional buyers:

Daniel Bagwill	Odom Bunn	Wm Dunn	Willie Gann
Hardy Griffin	James Bud Lee	John Martin	William Parrish
John Pirce	Philip Pirce	Elisha Strickland	Jacob Strickland
Benjamin Upchurch	*Benjamin Wheler*	*Dred Wheler*	

"Noted was money received from Charles Upchurch for debt to Jas Pirce. Account examined by Saml Jones, Brittain Harris; noted was B. Mann dec'd.
"1794. Thomas (x) Ray, with Richard Upchurch & *Benja Wheeler* securities, apptd gdn to Beedy, Betsey, Penny, Patty & Willie Pierce, minor orphans
"1794. Polley Pierce vs the heirs & excrs of James Pierce dec'd. Sd Polley requested dower from the estate of her dec'd husband James Pierce dec'd.
"1806. Account balance of Mrs Penny Pearce with Harrison & Jones. Account 1810. Noted was her part of her father's estate, including interest from Mar 1806.
"1811. 1811 from Penny (x) Pearce to Phillip Pearce from the hands of William Harrison; witnessed by Beady (x) Pearce. Memo of Phillip (x) Pearce concerning the rent of the land for Wilie Pearce in 1810."[47]

If it is not obvious, the first record above includes both Jesse Wheeler and John Wheeler co-signing as witnesses the will of John Martin, whose name has been shown above to be closely associated with Joseph Wheeler, Sr. And in the second record both Dred Wheeler and Benjamin Wheeler were buyers at the estate sale of James "Pirce" [Pierce/Pearce], and only a few months after the first record.

As the reader has already seen there were three John Wheelers counted in the 1790 and 1800 Franklin and Wake County censuses. Not all of them could have been the John "Wheler" who appeared in the 1800 Chatham County census and living adjacent to our Jesse "Wheler." The following record is of some interest if it names the John who was counted in the 1800 Chatham County census: otherwise it is just more "noise" in the problem of sorting out the Wheeler families:

[Wake] "*Wheeler, John* & Molley Harris, 8 Dec 1778, John Patterson, bm."[48]

The following two marriages are of much more interest, but provide us with yet another riddle:

[Wake] "*Wheeler, Dread* & Cloe Strickland, 16 Aug 1800; Thomas Nicholas Morris, bm."[49]

[Wake] "*Wheler, Benjamin*[a] & Treesy Burne, 29 Nov 1800; *Etheldred Wheeler*, bm."[50]

The marriage of Benjamin Wheeler, with Etheldred Wheeler acting as his bondsman certainly suggests a close relationship between the two, which tends to confirm some of my speculation above

[a] Internet sources (and therefore unconfirmed) state that Benjamin named his oldest son "Jesse."

(including the assertion that "Dred" is a nickname for "Etheldred"). But the marriage of Dread Wheeler, above, throws a new complication into the picture. As has been shown a Dred "Wheler" was counted in the 1800 Chatham County census (undated, except for the year) living in close proximity to John and Jesse "Wheler," and who was already married with a wife and four children living in his household. Either: 1) Dred's first wife died soon after the census was made, and he returned to Wake County to marry someone he knew from there as a second wife; or 2) the Dred Wheeler of Chatham County was not the same Dred Wheeler that married in Wake County in 1800. It is possible, of course, that the Dred Wheeler who married in Wake County in 1800 was a son of Joseph Wheeler, Jr. (named after Joseph's theorized brother). But in that case, which Dred/Etheldred Wheeler was counted in the 1810 Iredell County census? Since I have found no clear evidence of a second Dred/Etheldred Wheeler, I tend to lean towards the explanation that the Chatham County Dred Wheeler was the same man as the one who married in 1800 in Wake County (but it would not take much for me to change my opinion).

Summary: There is no "smoking gun" proof of the hypothesized relationships suggested in the above (I can neither prove them, nor disprove them), but at this time I nevertheless think that there is a very good probability that Jesse Wheeler was a son of Joseph Wheeler Sr., and that Joseph Jr., John, Dred/Etheldred, and Benjamin Wheeler were Jesse's brothers. (The presence of the multiple Johns in the above records is a confusion factor in this theory, admittedly.) If these relationships were not literally as I have deduced, I think it is at least fairly certain that they were all related closely, somehow. Joseph Wheeler Sr. first appears in the records in 1777; it is not known where he was before this date, though Virginia is, I think, a very good bet.

And I now strongly *suspect* that the Avery Wheeler who appeared in Baldwin County, Georgia records (below) with Jesse Wheeler *might have been* a son of Joseph Wheeler, Jr., and therefore a nephew of Jesse Wheeler.

Georgia and Alabama clues (and more solid evidence):

[**Comment:** The 1800 and 1810 censuses of Georgia have been "lost," so it is impossible through census information to determine if any of our "suspect" Wheelers were in Georgia before the records provided below indicate. The Baldwin County courthouse, and almost all its records (except the probate records which were in the home of the judge), were burned when General Sherman marched through the area during the Civil War.]

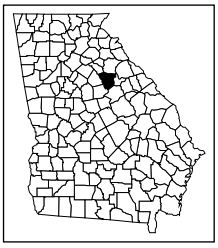

Fig. 5 Greene County, Georgia

"Avary" Wheeler first appears in Georgia records with his marriage to Rebeccah Cunningham on 10 October 1804 in Greene County.[51] He is also listed in an 1805 tax list for Greene County.[52] Rebeccah Cunningham apparently died very young because on 21 August 1810, in Baldwin County, "Avers" Wheeler married Mary "Polly" Moore, daughter of Luke Moore.[53]

In 1810, *both* Avery Wheeler and Jesse Wheeler are listed in the Baldwin County tax list, living in the same "Watson" District[54] ("area of Buckeye, Potatoe, Cedar & Fishing Creeks"[55]). And in a subsequent tax year (1814-1817) they are *both* listed in the Baldwin County tax list, living in the same "Wood" District.[56]

[**Comment:** There are no other Wheelers listed in Baldwin County tax records for these years.]

The 1819 land lottery list for Baldwin County, Georgia, reveals some surprising new names and possible relationships to our search. In the "Watson's Battalion District – Registered 15 Mar 1819"[57] appear:

- Wheeler, Asberry
- Wheeler, Henry
- Wheeler, Jesse

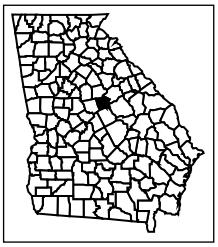

Fig. 6 Baldwin County, Georgia

An explanation of who appears on the above list is offered: "The 1805 Lottery is the only lottery where we have a complete list of all who *registered* to draw land. In the other five lotteries we have only a complete record of those who drew land. However, in Baldwin County four books in which the names of those who registered to draw in the lottery of 1820 and 1821 were listed. These four books do not comprise all who registered unfortunately, but they are nevertheless helpful insofar as they go because *they show the names of some of the residents of Baldwin County who do not appear in the census of 1820 because they were not heads of family*."[58]

The 1820 census of Georgia (Georgia's first extant census) lists three Wheelers in Baldwin County: "Asberry" Wheeler, Jesse Wheeler, and Rebecca Wheeler. At this time we do not know who Rebecca Wheeler was[a], much less whether she was in any way related to Jesse or Asberry **Wheeler**.

The Jesse Wheeler household consisted of one male less than 10 years old, one male 10-15 years old, one male 18-25 years old, one male over 45 years old, 1 female 10-15 years old, one female 16-26 years old, and one female 26-44 years old. It should be noted that the 1800 Chatham County, North Carolina, Jesse Wheeler household had no females, so this may not be the same Jesse Wheeler. Conversely, 20 years had elapsed since the 1800 census, and perhaps Jesse Wheeler had remarried and had children by his second wife. Since Henry H. Wheeler said he was 50 years old in 1850, meaning he was born about 1800, then he and Francis Asbury B. Wheeler could have been the two sons in the 1800 Chatham County census of Jesse Wheeler, and it certainly appears that Henry would be the older son in the 1820 Baldwin County census. Returning to the explanation of the 1819 lottery registration, above, which listed Henry and "Asberry" with Jesse, it specifically stated that to be on the lottery list one did not have to be a head of household, or, in other words, men listed on the lottery list could still be minors living with their parents. This could, then, explain Henry's being on the lottery list, but not a head-of-household in the 1820 census.

The "Asberry" Wheeler household consisted of one male in the 16-26 year old range, and one female of the same age; so apparently "Asberry" Wheeler was married by 1820. According to one unconfirmed source,[59] Francis A.B. Wheeler had married Susan Ann, or Susannah, Barnes in 1812 in Edgefield County, South Carolina. It would seem improbable that Francis A.B. Wheeler had married in 1812 if he was less than 26 in 1820, and evidence of such a marriage has not been found in Edgefield County records. But he was apparently married in 1820!

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[a] Rebecca Wheeler *may have* been Rebecca (Nunn) Wheeler, widow of John Wheeler. She is reported by Internet sources (and therefore unconfirmed) to have died in Baldwin County prior to 1837. John Wheeler is thought to have been from North Carolina, but no one seems to know anything more about him.

Then we find one of the most revealing records in an article from a Milledgeville (count seat of Baldwin County) newspaper:

> "Issue of 20 April 1819 ... Will be sold on the first Tuesday in June next, at the court-house in the town of Milledgeville, the north west half of lot No. 102, in the 2d district of Baldwin County ... 101 ¼ acres ... taken to satisfy sundry executions in favor of *Avery Wheeler* against **Jesse Wheeler** and *Asberry Wheeler* – levied on and returned to me by G. Norres, constable. (Signed) John Watson, D.S."[60]

The above notice is important because the implied relationships it suggests. Jesse and "Asberry" being named co-defendants certainly suggests a strong relationship between the two of them. And the fact that Avery Wheeler – three Wheelers in one suit – is involved also, but more weakly, *suggest* that he might be related, too.

The following year "Asberry" was again the subject of a newspaper notice:

> "Issue of 29 May 1821 ... Will be sold in the town of Milledgeville, on the 1st Tuesday in July next, the following property, viz: One negro boy by the name of John, taken as the property of Charles F.M. Betton, to satisfy a fi fa in favor of Thomas Brantly ... One negro man by the name of Doress, taken as the property of *Asberry Wheeler*, to satisfy a fi fa in favor of Henry Brown. (Signed) John Watson, Shff."[61]

In the 1821 lottery registration listing for Baldwin County, are listed Henry Wheeler and Francis A. B. Wheeler,[62] both listed in "Major Richard W. Ellis' Battalion."

About 1819-1820 Avery Wheeler moved to what is now Sumter County, Georgia, where he lived the remainder of his life. We find no additional records of him in Baldwin County. But before leaving him I will provide here a list of his children for two reasons: 1) to help us to identify Baldwin County Wheelers who were not of his family, and 2) to show that there is some naming commonality between his family and that of the Wheeler family we are researching.

1. Jane Avery Wheeler, b. 1811, m. Jacob Wilkins Cobb in 1826
2. Green Moore Wheeler, b. 1813, m. M. McPherson/Sarah Mims
3. Susannah Wheeler, b. 1815, m. W. Eubanks/Jesse Edwards
4. Alexander Watson Wheeler, b. 1818, m. M. Robertson/Nancy Brown
5. Martha Wheeler, b. 1825, never married
6. Bartholomew Wheeler, b. 1829, m. (?), d. after 1850
7. Benton Moore Wheeler, b. 1832, m. Mary Mims 1850, d. 1904
8 Frances Wheeler, b. 1835[63]

It should be noted that Avery named a son Green (see below for significance of this) and a daughter Frances.

In the five year period between 1822 to 1827 we find three Baldwin County marriages that are critical to our study:[64]

1. **Henry Wheeler** married **Mary Ann Sawyer** 29 August 1822
2. *F. A. B. Wheeler* married Susannah Irwin 8 July 1824
3. *G. E. Wheeler* married Mary Ann Tolbert 4 April 1827

[**Comment:** Jumping ahead, when F.A.B. Wheeler died in Montgomery County, Texas, his widow was named Susannah, and G.E. Wheeler, age 44, born in Georgia, is found in the 1850 Harrison County, Texas, census with wife "M.A." It is curious that no Irwin family or Sawyer family has been found in Baldwin County records in the 1820s, though there was a Francis Sayre family there at one time.]

The 1827 Georgia lottery listed *Francis* and **Henry Wheeler** as winners thusly:

Sec	Dist	Lot No.	Name	Residence	Capt. Dist.	County of Draw
5	12	155	Wheeler, Francis Asbury B.	Baldwin Co.	Doles	Carroll County[65]
2	21	218	Wheeler, Henry H.	Baldwin Co.	Doles	Muscogee County[66]

[**Comment:** Carroll County and Muscogee County are both on the western border of Georgia, and Muscogee is directly south of Harris County – see below. Note that both Henry H. and Francis Asbury B. were listed in the same Baldwin County district.]

Continuing with newspaper notices that mention F.A.B. Wheeler we find:

"Tuesday, 9 Dec 1823 ... We are authorized to announce *Francis Asbury Wheeler* a candidate for Coroner in the ensuing election, for Baldwin County"[67]

[**Comment:** No record has been yet found to indicate whether he won or lost, but I would guess that he did win since he was named the first coroner of Harris County when that county was created – see below.]

"Tuesday, 16 Jan 1827 ... Remaining in the Post Office at Milledgeville, Baldwin County, Georgia, on the first day of January 1827 ... *Asbury Wheeler* ..."[68]

"Issue of 27 March 1827 ... Between the usual hours of sale, will be sold on the 1st Tuesday in May next, at the court house of Milledgeville, the following property, to wit: 150 acres of land, adjoining Benjamin Reynolds, to satisfy fi fas in favor of John H. Ware and David Lovett; levied on and returned to me by *F.A.B. Wheeler, constable*...."[69]

"Issue of 1 May 1827 ... For cash, will be sold at the courthouse in the town of Milledgeville, Baldwin County... on the 1st Tuesday in June next, the following property, to wit: 500 bushels of corn ... levied on as the property of Bartlett Wicks, to satisfy a fi fa in favor of Loyd Johnson against said Wicks and William J. Davis ... 50 acres of oak and hickory land, adjoining Richard Haws and others, levied on as the property of *F.A.B. Wheeler*, to satisfy a fi fa ..."[70]

"Issue of 29 May 1827 ... Between the usual hours of sale, will be sold on the 1st Tuesday in July next, at the courthouse in the town of Milledgeville, the following property, to wit: One negro woman by the name of Charlotte ... levied upon as the property of John C. Mangham, to satisfy a fi fa in favor of John H. Morel ... pointed out by William Y. Hansell. All the interest Bushrod Crowder has in 4 negroes ... it being one-eighth part, levied on to satisfy two fi fas in favor of William Perry ... returned to be my *F.A.B. Wheeler* (Signed) William Grigg, Sheriff."[71]

"Issue of 3 July 1827 ... For cash, will be sold at the courthouse in the town of Milledgeville, Baldwin County ... on the first Tuesday in August next, the following property, to wit: ... Four negroes ... levied on as the property of Robert Reynolds ... One negro woman named Darcus, 30 years old, levied on as the property of *F.A.B. Wheeler*, to satisfy a fi fa ... for the use of Andrew Murry. (Signed) Shadrack Bivins, D. Sheriff."[72]

"Issue of 3 July 1827 ... Between the usual hours of sale, will be sold on the first Tuesday in August, at the courthouse in the town of Milledgeville, Baldwin County, the following property, to wit: ...Bushrod Crowder's interest in and to his father's estate, supposed to be one-eighth part of 5 negroes ... 1 in the possession of John S. Drumon; 4 in the possession of Nancy Crowder, levied on to satisfy fi fas in favor of William Perry ... returned to me by *F.A.B. Wheeler, constable*..."[73]

> "William D. Scogin, Issue of December 13, 1827. Pocket Book Lost. – In Baldwin County, in the settlement of the subscriber, was lost on or about the 1st, 2d, or 3d inst., a pocket book containing the following papers, to wit: one note on Paul H. Tiller...for $20...one note on Allen Hardman and Seaborn Cochran, for $25...one note on Miles Moore, payable to me, dated in August 1826...three notes on *Green E. Wheeler* and **Jesse Wheeler**, for $30 each...one note payable to James Tomlinson...for $12.50...A liberal reward will be paid for the delivery of the pocket book with its contents. (Signed) William D. Scogin."[74]

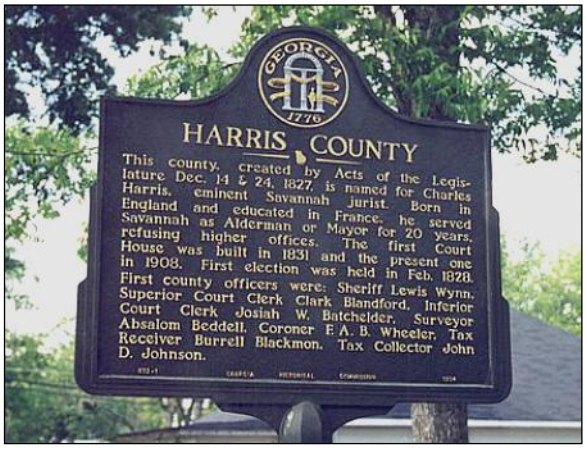


Fig. 8 Historical marker in Harris County, Georgia, naming F.A.B. Wheeler as 1st county coroner.

Jesse Wheeler is not found in any remaining records of Baldwin County after the 1820 census. The July 1827 newspaper notices above are the last records we have found for our (postulated) Wheelers in Baldwin County. We now know that Francis Asbury B. Wheeler was next in Harris County, Georgia when it was formed later in the same year, in December 1827. The historical marker commemorating the event is shown in the accompanying picture, and it names F.A.B. Wheeler as the county coroner.

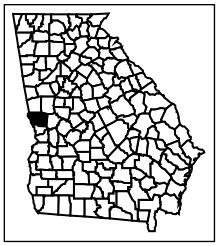


Fig. 7 Harris County, Georgia

In 1828 the Harris County, Georgia, list of petit jurors included F.A.B. Wheeler and H. Wheeler.[75]

F.A.B. and Henry H. Wheeler were not in Harris County very long at all, because in the 1830 census we find F.A.B. Wheeler in Butler County, Alabama, and Henry in Montgomery County, Alabama (with some familiar names, and some new ones).

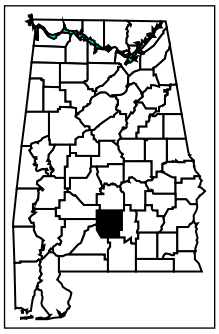


Fig. 9 Butler County, Alabama

The 1830 census of Butler County, Alabama, lists a Francis A. Wheeler household consisting of 1 male less than 5 years old, 1 male 40-50 years old, 1 female less than 5 years old, and one female 20-30 years old.

[**Comment:** One of my sources[76] has told me that when F.A.B. Wheeler came to Montgomery County, Texas he had a son who died young and is buried in the Lowrey family cemetery. This would appear to be the son above. Jumping ahead it is important to compare how the 1850 census data of the F.A.B. Wheeler family is listed (age and birth place) to see that the above data is entirely consistent with the 1850 census. I cannot explain how F.A.B. Wheeler apparently aged more than 10 years between the 1820 census and the 1830 census; the data would make much more sense if he was listed in the 30-40 year-old category. One has to be careful with census data however; it is often wrong.]

Butler County records were burned in a courthouse fire, but there is one record that has survived which is of interest to us: it is the very lengthy deposition of a Theophilus Petty, dated 2 December 1833, requesting a Revolutionary War pension, and which was taken ("subscribed to") by Francis A.B. Wheeler, J.P.[77]

The 1830 census of Montgomery County, Alabama, provides us some surprising information. In the actual census, listed together in adjacent entries, were: Jesse Wheeler, Greene Wheeler, and Henry Wheeler.

The Jesse Wheeler household consisted of one male 15-20 years old, one male 70-80 years old, and one female 50-60 years old. This appears to be the same Jesse Wheeler who was listed in the 1820 Baldwin County, Georgia, census, with two of his sons and one daughter having left home. One of the sons who left home is, of course, Henry H. Wheeler. The other son is almost certainly the Greene Wheeler listed immediately below **Jesse**. And the remaining son would appear to be Elias H. Wheeler – see below.

The Greene Wheeler household consisted of one male less than 5 years old, one male 20-30 years old, one female 5-10 years old, and one female 15-20 years old. Recall that a G.E. Wheeler married Mary Ann Tolbert in Baldwin County, Georgia, in 1827. The female who was 5-10 years old would have been too old to have been born before the 1827 marriage, so she may not be a daughter. If we skip forward to the 1850 Henderson County, Texas, census we find G.E. Wheeler, age 44 (i.e., born about 1806), born in Georgia, with wife "M.A." Wheeler, age 44, born in Georgia. Their children included a son "J.F.," age 21, born in Georgia, and with 6 children ranging in age from 16 to 5, all born in Alabama (the last child listed, age 2, was born in Mississippi). Again, except for the 5-10 year-old female the 1850 census data *is entirely consistent* with G.E. Wheeler who married Mary Ann in 1827 and was listed on the 1830 Montgomery County census as Greene Wheeler, right between Jesse and Henry Wheeler.

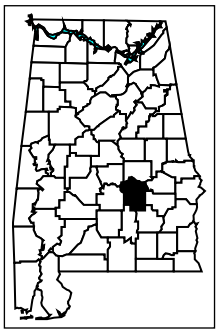


Fig. 10 Montgomery County, Alabama

The Henry Wheeler household consisted of one male less than 5 years old, one male 5-10 years old, one male 20-30 years old, one female less than 5 years old, and one female 20-30 years old. The male who was 5-10 years old was almost certainly John Wheeler, and the younger female was almost certainly Amanda Wheeler (who married James Avery Thomas [Chapter 19]). This data tells us that Henry and Mary Ann Wheeler had a son who apparently did not live beyond childhood. In fact, since we have no further information on Mary Ann (Sawyer) Wheeler after this date, it is possible that the youngest son and his mother died about the same time, soon after the census was taken, of some illness. This conjecture is perhaps reinforced by the fact that on 5 January 1840 – only a few months before we know Henry H. Wheeler showed up in Montgomery County, Texas – *a* Henry Wheeler married Eliza Holman in Montgomery County, Alabama.[78]

Montgomery County, Alabama, is the home of the Alabama State Capital, and of course the county courthouse, with almost all of its records, was burned during the Civil War. However if we go to the Bureau of Land Management (BLM) records, we find some additional, seemingly relevant, information. There were 11 small land grants (all of about 40 acres) made to Wheelers in Montgomery County between 1835-1840:

Patentee Name	Issue Date	Doc. Nr.
Wheeler, Christiana	10/10/1840	34493
Wheeler, Elias	10/15/1835	20656
Wheeler, Elias	10/15/1835	26657

Wheeler, Elias	10/10/1840	34434
Wheeler, Elias H	8/14/1837	31343
Wheeler, Green	8/14/1837	31339
Wheeler, Green E	8/2/1837	26949
Wheeler, Green E	8/8/1837	28531
Wheeler, Greene E	9/12/1835	13165
Wheeler, Greene E	9/12/1835	13166
Wheeler, Samuel M	10/16/1835	16838

This data tells us that Greene Wheeler in the 1830 census is almost certainly the same as Green(e) E. Wheeler in the above list of grants. And it does not take a large leap of imagination, given this information, to assume that he is the same "G.E." Wheeler who married Mary Ann Tolbert in Baldwin County, Georgia, and who was listed in the 1850 census of Harrison County, Texas.

Christiana Wheeler is an enigma. "Christian," as a name, is usually a man's name; the feminine form is usually "Christiana," the latter of which is clearly the way it is spelled in the BLM records. The 1840 census of Montgomery County, Alabama, lists a "Christian" Wheeler household which consists of 1 male 10-15 years old, 2 females 5-10 years old, 1 female 10-15 years old, and one female 60-70 years old. Clearly the head of the household was the 60-70 year-old female, *and this may very well be the widow of Jesse Wheeler*! Maybe the young children were grandchildren who were staying with her. Whoever he/she was, no further record has been found for him/her in Alabama, Louisiana, Arkansas, or Texas.

Elias H. Wheeler is a new name to us, and he may be yet another son! He is listed in the Montgomery County, Alabama, 1840 census with an apparent "alias" that I cannot explain as "G.B." Wheeler, living very close to the Christian/Christiana Wheeler household. His household at this point consists of his wife, 1 son, and five daughters. He appears in the 1850 census of Bradley County, Arkansas, as age 37, born in Georgia, with a daughter named *Christianna*, and four children all born in Alabama (and 2 born in Louisiana, and 1 born in Arkansas). In the 1860 Bradley County census he appears with a young son named *Jesse*.

At this point we have no further trace of Jesse Wheeler. He probably died in Montgomery County, Alabama, before 1840, and perhaps his death freed Henry to make his subsequent move to Texas. It appears that his second wife (and the postulated step-mother of Henry H. and F.A.B.) was named Christiana, and that she was still living in Montgomery County, Alabama, in 1840.

Summarizing, it appears possible that Jesse Wheeler originated as Jesse Wheeler in North Carolina, and he may have been the son of Joseph Wheeler Sr. of Wake and Franklin counties. He may have had a brother named John who appears to have died between 1800-1810 in North Carolina, and possibly brothers Dred/Etheldred, Joseph Jr., and Benjamin Wheeler. It appears that Jesse had two sons by a first wife, and that about the time he moved to Georgia between 1800 and 1806 he remarried, and his other sons, and one daughter, were children of the second wife. The name of the first wife is unknown; the second may have been named Christiana. The postulated children of Jesse Wheeler, then, are:

1. Francis Asbury B. Wheeler; b. ca. 1790-1800 in NC; d. ca. 1841-1842; m. (1) _____ bef. 1820, (2) Susannah Irwin 8 Jul 1824 in Baldwin Co., GA

2. **Henry H. Wheeler**; b. ca. 1800 in NC; d. aft. 1854; m. (1) **Mary Ann Sawyer** 29 Aug 1822 in Baldwin Co., GA, (2) Eliza Holman 5 Jan 1840 in Montgomery Co., AL [79]
3. (daughter) Wheeler
4. Greene E. Wheeler; b. 8 Dec 1806 in GA; d. 1 May 1879 in Harrison Co., TX;[80] m. Mary Ann Tolbert 4 Apr 1827 in Baldwin Co., GA
5. Elias H. Wheeler; b. ca. 1813 in GA;[81] d. 31 Dec 1869 in Bradley Co., AR;[82] m. Hannah Johnston 2 Oct 1832 in Montgomery Co., AL[83]

Texas (and even more solid ground):

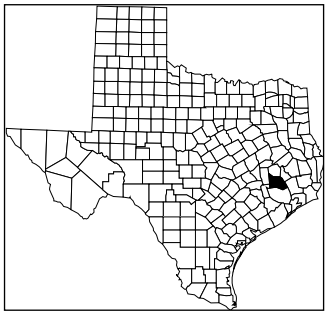


Fig. 11 Montgomery County, Texas

We will first provide all the solid information we know about Francis Asbury Wheeler, before continuing with Henry H. Wheeler.

Francis Asbury B. (Benjamin?) Wheeler:

The tax rolls of Montgomery County, Texas, list no Wheeler for the year 1838. In 1839 F.A.B. Wheeler is listed on the Montgomery County tax rolls with no land, paying one poll tax. In addition in that same year he was listed as a witness to a deed:

"Bond 20 Aug 1839
"Bond in the amount of $2,000.00 from David S. Files to James R. Mathews to John Pattison. David S. Files sells to John Pattison a tract of land in Montgomery Co., which is one-half of the headright of David Stewart according to Certificate #113 (?#103) for 1240 acres, surveyed by Isaac Garner, a deputy surveyor for the county. The tract contains 640 acres, more or less and is sold for $640.00. /s/ David S. Files, James R. Mathews Wit: /s/ *Francis A.B. Wheeler*, Wm. Bowen."[84]

The above abstract was excerpted from a book of abstracts that covers Montgomery County deed books A through E, 1831-1840, with an every-name index. This is the *only* instance of F.A.B. Wheeler's name appearing in the Montgomery County deed books! This was confirmed by a research trip to the Montgomery County courthouse to go through the actual courthouse records by the author in August 2003. He simply had *no* deed transactions in his own name that were recorded in Montgomery County records!

In 1840 he was listed as a member of a jury to include: Joseph Bennett, Blake Brantley, Henry Mock, William Ware, Jesse Young, John Peterson, "T.A.B." Wheeler, Phillip Goodbread, Wm. Cartright, J.A. Cook, Hiram Little, and Samuel G. ??[85]

Despite our assertion that he *owned* no land, the Montgomery County tax records, and Texas General Land Office (GLO) records will show that he was in control of some land just before his death. It is important for the reader to understand that things were chaotic in the days of the Republic, and that *state* surveys, petitions, grants, and patents were recorded at the state level, and are not a part of the county's records. In those days these certificates of survey and all the intermediate steps taken prior to receiving a clear title (final patent) were as negotiable as, and maybe more so than, money.

In the 1840 Montgomery County tax rolls, F.A.B. Wheeler was listed as "controlling" 2114 acres, held by "authority" *of survey*, i.e., he controlled that much land that had been surveyed, but had not been patented, or more clearly, he did not yet have title to the land. Similarly, on the 1841 tax roll, he was listed with 2754 acres, all by authority of survey.

If one goes to the GLO indexes on-line (Internet), one will find that at some time F.A.B. Wheeler, or his heirs, obtained title to the following land grants, all in Montgomery County:

Abs. No.	Class	Original Grantee	Patentee	Patent Date	Acquired[a]	Acres
102	Bounty	James Bridgeman	F.A.B. Wheeler	23 Mar 1850	30 Aug 1838[86]	480.00
551	First	Ambrose Tinny	F.A.B. Wheeler	24 Feb 1847	27 Feb 1839[87]	177.10
606	Second	Anderson Worley	Hrs. of F.A.B. Wheeler	2 Mar 1847	10 Aug 1838[88]	640.00
623	Third	Francis A.B. Wheeler	Francis A.B. Wheeler	9 Nov 1854	12 Aug 1839[89]	640.00
				Total		**1937.1**

The above listing does not total the 2114 acres in 1840 or the 2754 acres in 1841 that he controlled according to the Montgomery County tax rolls. Clearly he was "trading" in control of surveys of land, and in 1841 had control of more than was eventually granted to him and his heirs – meaning that some of that control had been sold by him or his heirs prior to when final patents were issued. The following gives some clues as to how land was handled in those days:

"James Powell
-To-
Heirs of F.A.B. Wheeler The State of Texas }
Walker County }

"Know all men by these presents that I James Powell of said County and State for and in consideration of the sum of two hundred dollars to me in hand paid *heretofore* by Francis A.B. Wheeler of the County of Montgomery deceased the receipt and payment whereof I do hereby acknowledge and confess to my entire satisfaction have this day bargained and sold and do by these presents bargain and sell alien and release convey and confirm unto Susannah Wheeler widow and relic of said Francis A B Wheeler decd and administratrix of the Estate of said Francis A B Wheeler decd for the use benefits and behoof of the heirs of said deceased the right and title in and to the headright labor certificate No. six issued by the board of land Commissioners in and for the County of Montgomery and the lands located surveyed and secured by virtue of the same situate being and lying in the County of Montgomery State aforesaid about One mile East of Lake Creek and being the land on which the said Susannah Wheeler and the heirs of said deceased resides and is comprised and included within the following meetes bounds and limits to wit Beginning on the East boundary line of the headright labor survey of John Landrums Corner a stake from which an Elm 10 in. dia bears S. 45° W 9 8/11 varas dist and a pine 10 in. dia bears N. 83° E 8 8/10 varas dist Thence North 1° West 110 branch 400 varas N.E. Corner of said Labor a stake from which an Iron wood mkd Z bears S 89° W 2 varas dist and an Elm markd X 15 in. dia. bears East 3 varas dist Thence North six hundred varas a stake from which a pine 8 in. dia. bears S 64 – East 1 4/10 varas and a pine 24 in dia bears South 36° W 8 varas dist Thence East one thousand and three varas to a stake N.E. Corner from which a black Oak 30 in. dia. bears S. 16° E 1 4/10 varas dist and a pine 24 in dia. bears S. 68° W 6 varas dist Thence South one thousand varas to corner a stake from which a pine 8 in dia. bears S. 1° W 4 varas and a pine 14 in. dia. bears N. 48° E 3 6/10 varas Thence West Nine hundred and ninety varas to the place of beginning the bearing trees except the corner an marked F.W.

"Containing One Labor of land to have and to hold said land and bargained premises and every part and parcal the same together with all and singular the right members thereof belonging or in any wise incident or

[a] First acquired (by various means) by Francis Asbury B. Wheeler.

appertaining thereto unto hur the said Susannah Wheeler administratrix as aforesaid for the sole use benafit and behoof of the heirs of said deceased their heirs and assigns forever and I the said James Powell for my self and each and every of my heirs executors and administrators do and will by these presents warrant and forever defend the right and title in and to said land and bargained premises and every part and parcel of the same with all and singular the rights members tenaments heredaments privleges uses and appurtenances to the same or part thereof belonging or in any wise incident or appertaining thereto unto her the said Susannah Wheeler the administratrix aforesaid for the sole use benafit and behoof of them the said heirs of Francis A B Wheeler deceased their heirs and assigns against the Claim or claims of all and every person or persons whomsoever claiming or to claim the same or any part therof in any way manner or form whatever in testimony of which I have hereunto set my hand and Offical my Scroll which I use and recognise as my seal this the Eighth day of October A.D. (1846) one thousand Eight hundred and forth six.

Signed sealed & delivered James Powell (Seal)

in presence of

N H Davis"

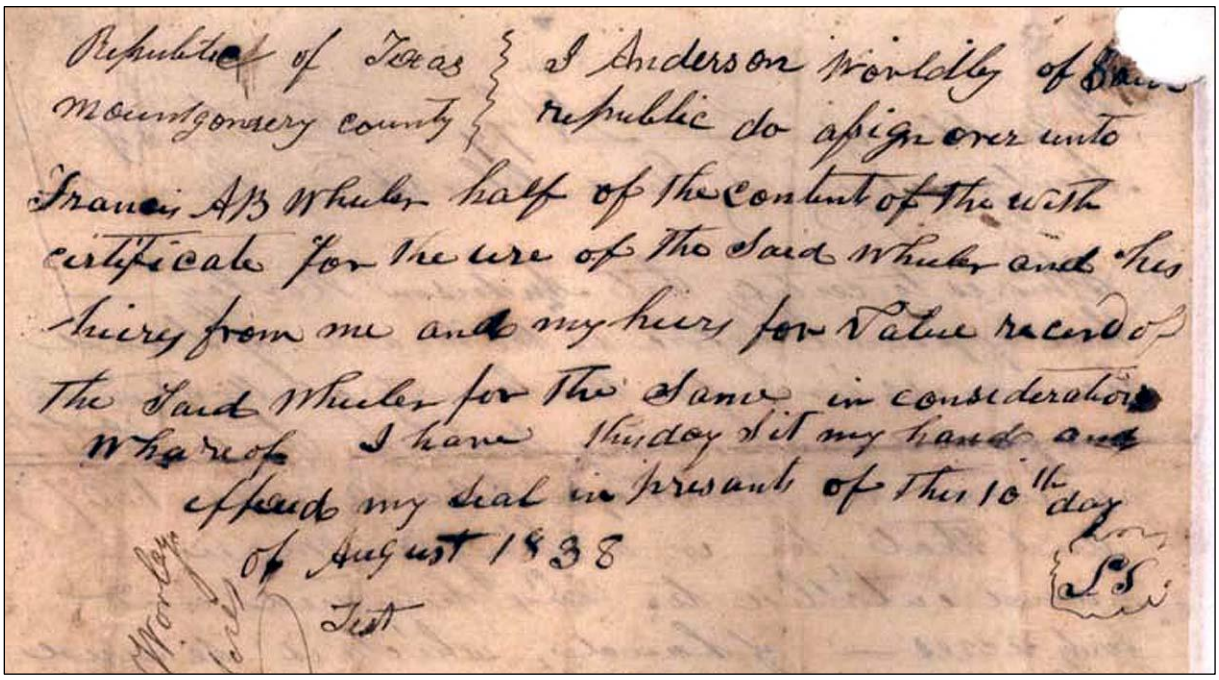
R J Epps" [90]

Fig. 12 Part of original landowner map of the Lake Creek Settlement in Montgomery County

Thus from the wording of the above deed, it appears that Francis Asbury B. Wheeler had paid James Powell for the above land sometime prior to his death, and that the title to the land was not formally transferred until the above deed. From GLO abstracts, this land was originally granted to James Powell as a First Class grant, and was patented to him on 27 Feb 1847. It is Abstract Number 415 for Montgomery County, and contains 177.10 acres.[91] The 1937 acres totaled above, *plus* this 177 acres, equals 2114 acres, the number of acres that F.A.B. Wheeler was credited with in the 1840 tax rolls. Thus, it appears we have accounted for all the land that F.A.B. Wheeler, or his widow, paid taxes for in 1840, and in subsequent years, except for 1841.

The location of 4 out of 5[a] of the above 2114 acres of land is shown in the enclosed map of original landowners of the Lake Creek Settlement of Montgomery County, Texas. In the upper left corner of the enclosed map, north and northwest of the W. (William) Landrum survey one will find the surveys of A. (Anderson) Worley, J. (James) Powell (the A. Worley survey wraps around the small J. Powell survey on three sides), and the J. (John) Bridgeman and F.A.B. Wheeler surveys, the latter two being mostly on the west side of Lake Creek. It should be noticed that the F.A.B. Wheeler land is separated into two parts, the two parts separated by the surveys of J. (John) Landrum and J. (John) Wheeler[b]. (It is noteworthy to point out here that John Thomas [Chapter 19] whose son James Avery Thomas married Amanda Wheeler at one time or another owned 300 acres on the western side of the W. Landrum survey, 260 acres of the W. Patterson survey, and 60, or 55, acres of the B. Rigby survey.)

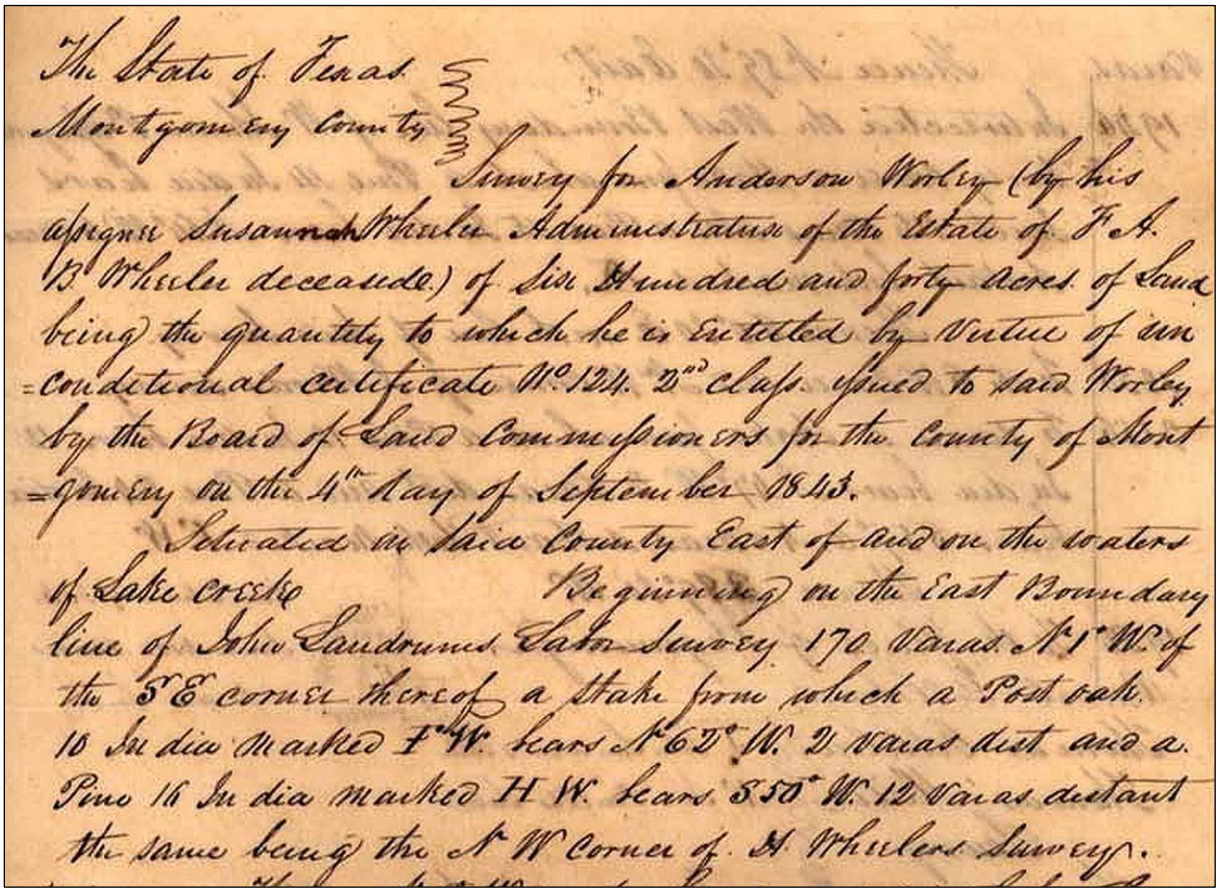
Looking now at more detail in the Anderson Worley survey, which was the first land purchased by Francis Asbury B. Wheeler when he arrived in Montgomery County, Texas… In Anderson Worley's 2nd Class Grant Certificate it is revealed that he arrived in Texas on 22 September 1837, and that the certificate for his entitlement to 640 acres of land was signed on 2 August 1838. Eight days later, on 10 August 1838, he sold ("assigned") half of his land rights to Francis A. B. Wheeler:[92]


Republic of Texas } I Anderson Worlelly of Same
Montgomery county } republic do assign over unto
Francis AB Wheeler half of the content of the with
certificate for the use of the said Wheeler and his
heirs from me and my heirs for value recevd of
the said Wheeler for the same in consideration
whereof I have this day set my hand and
affixed my seal in presence of this 10th day
of August 1838
Test
LS

[a] The tract or survey not shown in the enclosed map is the Ambrose Tinny grant of 177.1 acres. The survey for this tract described it as being on Little Sandy Creek, which I cannot find on a modern topographical map, and adjacent to the William Montgomery survey. There is a West Sandy Creek and an East Sandy Creek, both in the southern part of present-day Walker County, and both of which empty into Lake Conroe near the upper reaches of the lake. *However*, the Ambrose Tinny Certificate, in a margin note, says "Sandy Crk waters of Mill Creek." There is a Mill Creek in southwestern Montgomery County that generally parallels to the southwest Lake Creek and whose headwaters are south of the town of Plantersville in Grimes County. William Montgomery *did* have a Spanish land grant within the bounds of present-day Grimes County.

[b] Son of Henry H. Wheeler – see below.

The above land was not surveyed until 1843, after Francis Asbury Wheeler's death, and sometime between August 1838 and the date of the survey as the following will show, F. A. B. Wheeler had acquired the other half of the Anderson Worley grant:[93]



The State of Texas
Montgomery County

Survey for Anderson Worley (by his assignee Susannah Wheeler Administratrix of the Estate of F. A. B. Wheeler deceased) of six Hundred and forty Acres of Land being the quantity to which he is entitled by virtue of a conditional certificate No. 134. 2nd class issued to said Worley by the Board of Land Commissioners for the County of Montgomery on the 4th day of September 1843.

Situated in said County East of and on the waters of Lake creek Beginning on the East Boundary line of John Landrums Labor Survey 170 Varas N. 1° W. of the S.E. corner thereof a stake from which a Post oak 10 Inches marked F. W. bears N. 62° W. 2 Varas dist and a Pine 16 Inches marked H. W. bears S. 50° W. 12 Varas distant the same being the N. W. Corner of H. Wheelers Survey.

Notice that in the description of the first leg of the above survey it began on the "East Boundary line of John Landrums Labor Survey," and ended at a pine marked "H. W. … being the N W corner of H. Wheelers Survey." The "H" in the "H. Wheelers…" is questionable, and looks as though maybe someone tried to write over it with a "J." But the pine marked "H. W." tells me that the survey marker was originally made for Henry Wheeler. In any case it is very clear from the above that the "H." or "J" Wheeler survey being referred to in the above was the same land shown in the enclosed original landowner map (above) shown as the survey of "J. (John) Wheeler."

At first it was quite surprising is that there was no mention of the James Powell survey that the F.A.B. Wheeler heirs eventually acquired (see map above), and which was "tucked into" the Anderson Worley Survey in the above map. But James Powell did not obtain his land certificate until 2 February 1838, and his land was not surveyed until 17 June 1846.[94] (It is really quite surprising how hap-hazardly these lands were recorded, and despite that how people seemed to honor the other fellow's claims.)

Significantly, there was no tax roll listing for F.A.B. Wheeler in 1842. This is probably explained by the fact that his widow, Susannah Wheeler, filed as administratrix[a] for his estate in April 1842:

> "#128 WHEELER, Francis A.B., deceased.
> "Probate Notice. '...Susan Wheeler (widow & relict of F.A.B. Wheeler, decd).'
> "Petition of 'Susana Wheeler...' Granted Apr 1842.
>
> "26 Apr 1842 – Bond. $2000 /m/ Susana Wheeler, principal. David S. Files, David Stewart, securities.
>
> "29 Jan 1850 – Guardian Petition. '...N. Hart Davis as guardian Ad Litem of Amanda M. Wheeler & Louisa M. Wheeler, minor heirs of F.A.B. Wheeler, deceased.'
>
> [**Comment:** Note that *both* F.A.B. Wheeler *and* Henry H. Wheeler had daughters named Amanda – a fairly uncommon name in that time. This is another circumstantial piece of evidence that they were related.]
>
> "16 Jan 1850 – Petition. 'Allen Lowery & Sarah A.L. the wife of said Allen ... represents that said Sarah A.L. Lowery is the daughter of F.A.B. Wheeler, decd.' Estate has been closed, prays for partition of estate because 'there are four heirs & distributees ... (viz) Susannah Wheeler widow and relict of decedent who has intermarried with one Thomas Chatham, Sarah A.L. Lowery, formerly Sarah A.L. Wheeler, Louisa M. Wheeler and Amanda M. Wheeler, daughters & heirs of decedent.' /s/ Allen Lowery, Sarah A.L. Lowery. /s/ Susanah Chatham, Thomas Chatham & Louisa M. Wheeler.
>
> "4 Feb 1850 – Partition. Hugh McGuffin, James Moss & Elisha Uzzell, partitioners. One equal ½ - Susannah Chatham, as wife of decedent. 1/6 – Sarah A.L. Lowery as one of the children. 1/6 each Louisa M. & Amanda Matilda Wheeler as his children. Louisa M. & Amanda M. are minors without guardian and whose mother is entitled to a portion. Court appoints N. Hart Davis as guardian ad litem."[95]
>
> [**Comment:** Thomas Chatham, who married the widow Susannah Wheeler, was listed in the 1830 Marengo County, Alabama, census.]
>
> "25 Feb 1850
> Estate of F.A.B. Wheeler
> "Petitioners A. Lowery and wife vs. Thos. Chatham et al Report, dated 22 Feb 1850, on oath of three commissioners appointed by Court to make division and partition of property belonging to estate of decedent between plaintiffs and defendants.
> "At the residence of Allen Lowery, Mrs. Chatham agrees to take the labor of land, the headright of A. Tinny and sold by her to the Rev. Mr. Lancaster, and headright certificate of the late Frances [sic] A.B. Wheeler, as her distributive share of estate, relinquishing all her right to dowry on the premises on which said Lowery now resides, unto him and his wife, L.A. Lowery.
> "22 Feb 1850 – Commissioners divided the labor and 640 acres immediately adjoining, equally between L. Ann Lowery and her sister Louisa, giving Lowery and his wife the South and giving the North half to Louisa; allotted 480 acre tract on Lake Creek, Bridgman's headright, to Amanda Matilda Wheeler as her share; allotted Mrs. Chatham a mare, 5 cows, 5 head of young cattle, 1 sow & pigs, 2 year-old shoats as her share; allotted Mr. Lowery and wife 1 old horse, small colt, 5 cows, 6 head young cattle, 1 sow & pigs, 2 year-old shoats as his share; allotted Louisa Wheeler 1 filly, 2 shoats, 5 cows, 6 young cattle, 1 sow & pigs; allotted to Amanda Matilda Wheeler 1 filly, 5 cows, 6 young cattle, 1 sow & pigs, 2 shoats.
> "Value of property to each amounted to $500.00.
> /s/ E. Uzzell /s/ H. McGuffin /M/ Jas. Moss"[96]

Susannah Wheeler appeared on the tax rolls of Montgomery County in 1843 and 1844. In 1843 she was listed with 2114 acres of land *held by title*. This must surely be mistake, because in

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[a] When a person dies, leaving a valid will, the "Executor" named in the will is allowed to administer the estate, but when a person dies without a will, i.e., "intestate," the court appoints an "Administrator" (male) or "Administratrix" (female, usually the widow) to administer the estate. F.A.B. Wheeler, then, died without a will.

1844 she held the same 2114 acres, but this time by the *authority of survey*. Her name did not appear in 1845 and 1846.

The 1850 census of Montgomery County, Texas, provides us with some final information that is important in making the case that the F.A.B. Wheeler we have been tracking through Georgia and Alabama was the same man who settled in Montgomery County, Texas, in 1838-1839. In the Allen Lowery household (#137) we find the daughters of F.A.B. and Susannah Wheeler. Sarah (wife of Allen Lowery) is age 22, born in Georgia. Louisa is age 19, born in Alabama, and (Amanda) Matilda is age 17, also born in Alabama. This data is entirely consistent with the information provided above that the F.A.B. Wheeler family was in Georgia until ca. 1829-1830, and was in Alabama *at least* through 1833. *If we believe this census data, there is no way that F.A.B. Wheeler was a resident of Texas as early as 1823-1825*!

Before leaving Francis Asbury B. Wheeler, there is another legend about him that should be addressed. In the family legend F.A.B. Wheeler was a General prior to his coming to Texas, and evidence of this fact had been lost when his cabin was burned by the Indians (so the story I was told went), but that there was a bit of evidence that still remained: his sword[a], which was (and may still be, displayed at the Texas State Museum in Austin). Like most legends there may be a grain of truth to this story. After the Texas Revolution Indians on the outer edge of the frontier were raiding the homes of people in isolated places. As described in Stephen L. Moore's ***Savage Frontier, 1840-1841***:

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"**Colonel Wheeler's Campaign**

"In May 1840, Secretary of War Branch Archer issued a proclamation ordering the Texas Militia to enter into service to exterminate all Indians from Texas. The proclamation was soon deemed to be illegal and impractical since it called all able-bodied men into service and prevented them from raising corn for their families.

"Archer divided the Republic into five militia districts. The first covered all of the territory west of the Colorado River. The second was between the Colorado and Brazos rivers. *The third was between the Brazos and Trinity*. The fourth was between the Trinity and Sabine rivers. The fifth militia district was for the counties bordering the Red River. Secretary Archer designated a rendezvous site for each district and ordered the militia of each district to meet at the appointed place on 1 June 1841 [sic – 1840]. They were to encamp there until receiving further orders. Two of the key areas of rendezvous were Nashville-on-the-Brazos[b] and the Colorado River town of La Grange.

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a A sword could be *bought* by anyone at a well-stocked seller of arms such as rifles, pistols, knives, etc.

b "Nashville (also known as Nashville-on-the-Brazos) was a community on the southeast bank of the Brazos River in present-day Milam County, Texas, United States.

"The town was surveyed in the fall of 1835 with Sterling C. Robertson as its founder. It was named in honor of Nashville, Tennessee, Robertson's birthplace. The town served as the headquarters for Robertson's Colony. In January 1836, the settlement was attacked by Indians in the area. Two people were killed. This led to the formation of Sterling C. Robertson's Ranger Company. The rangers constructed Fort Milam at the falls of the Brazos and a second at the three forks of the Little River. Nashville was also designated the seat of justice for Milam municipality in 1836.

"Following the Texas Revolution, Nashville was considered by the Texas Congress as a possible site for the capital of the Republic of Texas. From 1837 to 1846, the town served as the Milam County seat. It began to slowly decline after 1846, when the state legislature moved the county seat to Cameron. In 1868, the arrival of the Houston and Texas Central Railroad at nearby Hearne provided the remaining residents with the incentive to move. The town's post office closed that same year."

"Most of the districts decided that Archer's proclamation was illegal and chose to ignore it. From the Second District, a few men of Washington County met on the east bank of the Colorado River between La Grange and Bastrop. After discussing their options for a day or two, these men unanimously voted to return home. Some of those participating in this campaign would call it the 'Archer Campaign.'

"The Third Militia District rendezvoused on 1 June. A few of the militiamen were from Navasota County,[a] but the vast majority were from Montgomery County, which in 1840 comprised the areas of present Grimes, Walker, Montgomery, and Madison counties. These men elected **Colonel Francis A. B. Wheeler** – the first settler in 1825 of Montgomery County[b] – to lead their regiment. **Wheeler** selected Uriah Case to serve as his command clerk, officially appointing him on 27 June 1840, as clerk of the Third Regiment, Second Brigade, Texas Militia.

"According to volunteer William Physick Zuber, a San Jacinto veteran, the rendezvous site was on the west bank of the Brazos River near Nashville in present Milam County…

"The Third Militia Brigade remained idle in camp, near Nashville during the first two weeks of June 1840. **Colonel Wheeler** held command over the various companies, but he found his job a difficult one. As the days passed without action, his 300 odd men quickly began to dwindle. Men returned home daily and the entire Navasota County company departed. The majority of the men from Militia Beats 3, 4, and 5 departed for home. Men found needs at home to be more pressing than to remain in volunteer service without action.

"During the idle time, another Indian depredation occurred very close to their area around 24 June 1840. A band of forty Indians came down from the Indian territory in northern Texas toward the residence of the Joseph Tidwell family. This party was later believed to be Cherokee and Kickapoos, but may have included some Kichais and Wacos as well. At his nearby residence, Senator Stroud heard the Indians yelling and believed that they must have killed the Tidwell family. After arming his servants and instructing them how to defend themselves in case of attack, Stroud rode to **Colonel Wheeler**'s camp of the Third Militia District near present Calvert.

"Stroud reached camp and reported on the raiding Indians during the night. 'As soon as it was light enough to find our horses, we saddled up and marched for the scene of the tragedy,' wrote William Zuber.

"**Colonel Wheeler**'s force numbered roughly, 150 men in a very ragged collection of units. As of 18 June, none of Montgomery County's Beat No. 4 company's officers remained. **Wheeler** had thus merged the remaining men, including the No. 5 company, into the remnants of Beat No. 2 company under Captain William R. Sanders. At the time **Wheeler**'s camp began to mobilize for action, only two other companies remained. They were Montgomery County's Beat No. 1 company under Thomas Pliney Plaster and Captain Bensen Risenhoover's Beat No. 6 company. Plaster, a lieutenant of rangers during the Texas Revolution, had fought with the Texian artillery at San Jacinto…

"**Wheeler**'s three companies reached Stroud's neighbor's home on Tidwell Creek, located at the site of present Calvert, about noon. They found that the Indians had killed Joseph Tidwell and captured his wife and three children. Tidwell had been plowing his field when the attack occurred. The militiamen soon found the Indians' trail and followed it back toward Indian territory.

"**Colonel Wheeler**'s Montgomery County militiamen were joined by a nine-man volunteer until from Robertson County under Captain Eli Chandler… The Robertson and Montgomery county militiamen tracked the Indians into the higher country, as Private Zuber later recorded.

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[a] Navasota County was the first name given to what became Brazos County.

[b] The claim of his being the first settler, or being in the area of Montgomery County, in 1823-1825 has been erroneously repeated so many times that it has become a part of history.

"We followed the trail for eight or ten days, subsisting on the flesh of buffaloes that our best hunters killed.

"At the head of the Navasota River[a], our commanding officer, **Colonel Wheeler**, and about half our regiment turned back. The remainder of us chose to proceed, and we elected J. G. W. Pierson our captain…

"Several days after **Wheeler**'s half of the regiment had turned back for home, Pierson's party encountered Indians…"[97]

And that concludes Colonel Francis Asbury B. Wheeler's only known military exploit – an approximate duration of 4 weeks from his *election* as Colonel until he left the field for home, and about a 48-mile chase after a band of Indians who he never engaged.

Henry H. Wheeler was born in North Carolina about 1800, and is presumed to be the son of **Jesse Wheeler**. On 29 August 1822, in Baldwin County, Georgia, he married **Mary Ann Sawyer**. As discussed above, it was probably Henry H. Wheeler who married Eliza Holman on 5 January 1840 in Montgomery County, Alabama.[98]

Henry H. Wheeler, according to his first land grant application (below), came to Texas in November 1840. He did not appear on the Montgomery County tax rolls until 1843 when he was listed with no land, but paid tax for one poll. Similarly, he still had no land in 1844, but paid one poll. He is not listed in the 1845 tax rolls of Montgomery County. Grimes County was created from Montgomery County in 1846, and in that year "H.H." Wheeler appeared on the Grimes County tax rolls paying one poll.

Henry H. Wheeler first filed for a land patent on 2 May 1842, and John, his son, filed for his own patent on the same day:

"Republic of Texas № 79
County of Montgomery Fourth Class
"This is to certify that **Henry H. Wheeler** has appeared before us, the Board of Land Commissioners for the County aforesaid, and proved according to Law, that he arrived in this Republic in November Eighteen hundred and forty that he is a head of family, and having never received certificate for the quantity of Land for which applies is entitled to a Conditional grant of Six hundred and forty acres of Land in accordance with act of Congress – approved 4th January 1841 and Supplementary act approved 4th February 1842. Given under my our hands at the town of Montgomery this 2nd day of May 1842..."[99]

On the back of the above record is a notation that "I certify that I have surveyed one hundred and Twenty two acres of land on the within certificate. J. M. Wade, Montgomery, June 5th, 1843."[b] Also noted on the back is the cryptic note: "File 4132 Nacogdoches 3d Henry H.

[a] The headwaters of the Navasota River are in present-day Limestone County, and a few miles west of Mexia, north of site of the famous Fort Parker. The famous attack by Indians on Fort Parker occurred in May 1836. The distance from Calvert to the headwaters of the Navasota River are about 48 miles by a straight-line path.

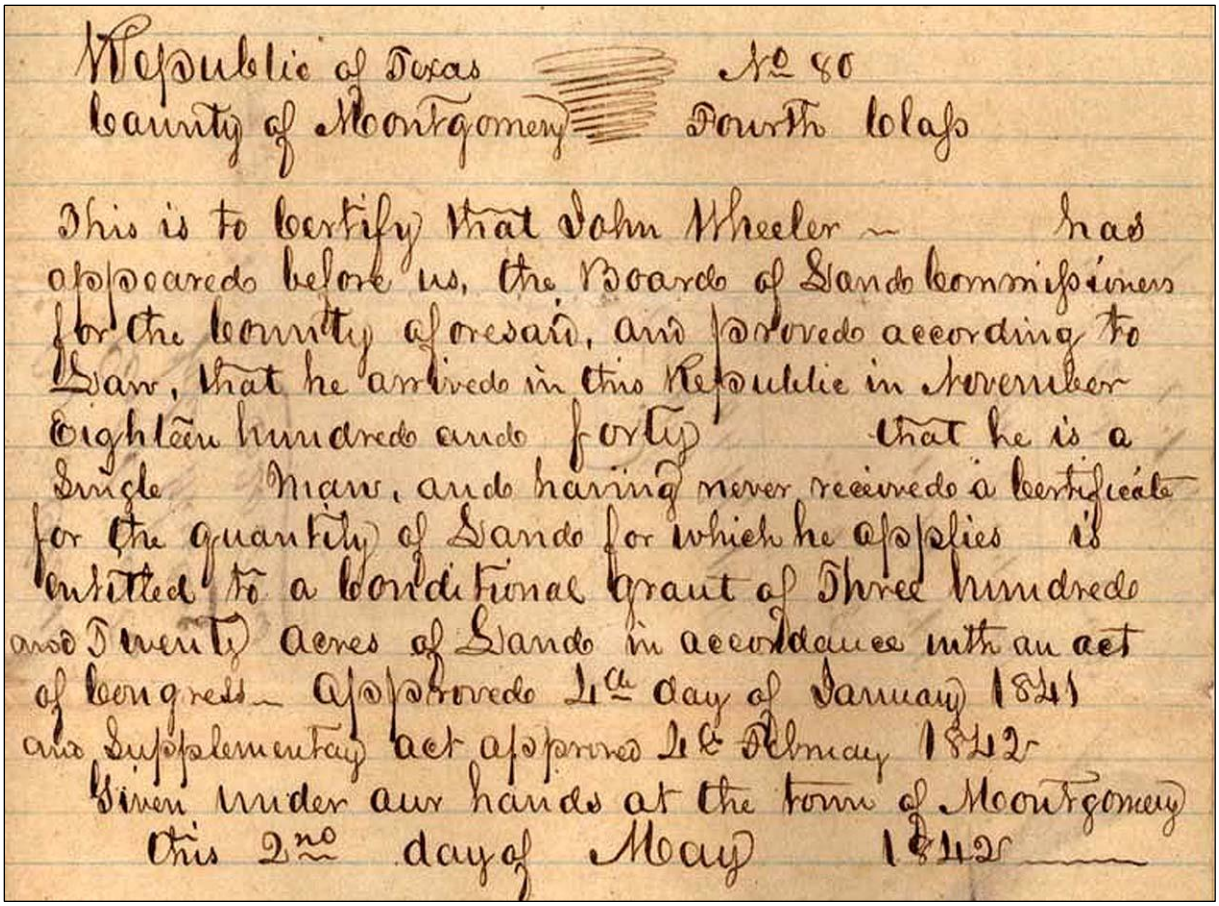
[b] This 120 acres of the 640 acres in the certificate or warrant is almost certainly the same land Henry H. Wheeler sold to Samuel Grimmett on 27 July 1843 (below).

Wheeler." Further implications of the latter note will be discussed below, but "File 4132" provides the following information.

> "County: Kaufman
> Abstract Number: 598
> District/Class: Nacogdoches 3rd
> File Number: 004132
> Original Grantee: **Wheeler, Henry H**
> Patentee: Von Rosenberg, William
> Patent Date: 19 Nov 1873
> Patent No: 474
> Patent Vol.: 41
> Certificate: 15
> Acres: 162"

The above file (#004132) is not accessible from the Texas GLO web site, but there is enough information in the above, and below, to make a very good guess as to what happened to Henry H. Wheeler's original headright certification for 640 acres. As discussed below, he sold 120 (or 122) acres of his 640-acre warrant to Samuel Grimmett, and this appears to be the only land that Henry Wheeler actually had surveyed from this grant. He appears from the above information to have sold (assigned) another 162 acres to William Von Rosenberg which was eventually surveyed and patented in Kaufman County. That would leave 356 acres that, as will be shown below, also ended up in the possession of William Von Rosenberg.

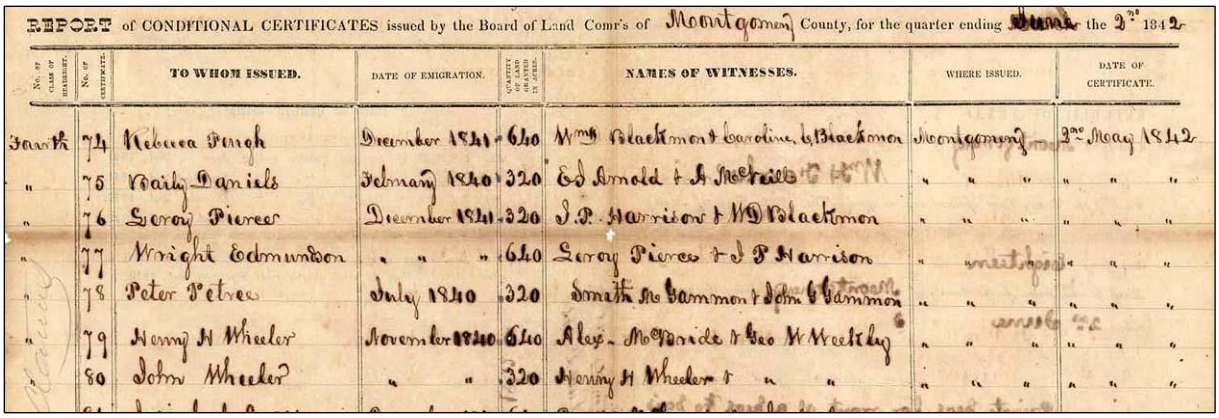
> "Republic of Texas — Nº 80
> County of Montgomery — Fourth Class
> "This is to certify that *John Wheeler* has appeared before us, the Board of Land Commissioners for the County aforesaid, and proved according to Law, that he arrived in this Republic in November Eighteen hundred and forty that he is a single man, and having never received a Certificate for the quantity of Land for which he applies is entitled to a Conditional grant of Three hundred and Twenty acres of Land in accordance with an act of Congress approved 4th day of January 1841 and Supplementary act approved 4th February 1842. Given under our hands at the town of Montgomery this 2nd day of May 1842..." [100]



Republic of Texas No 80
County of Montgomery Fourth Class

This is to certify that John Wheeler — has appeared before us, the Board of Land Commissioners for the County aforesaid, and proved according to law, that he arrived in this Republic in November Eighteen hundred and forty that he is a single man, and having never received a certificate for the quantity of land for which he applies is entitled to a Conditional Grant of Three hundred and Twenty acres of land in accordance with an act of Congress — approved 4th day of January 1841 and supplementary act approved 4th January 1842 —
Given under our hands at the town of Montgomery this 2nd day of May 1842 —

It is frustrating that the same certificate for Henry H. Wheeler cannot be found at the Texas General Land Office Internet site, but we can be sure that such a certificate was awarded to him by the Montgomery County Clerk's returns of 1842:



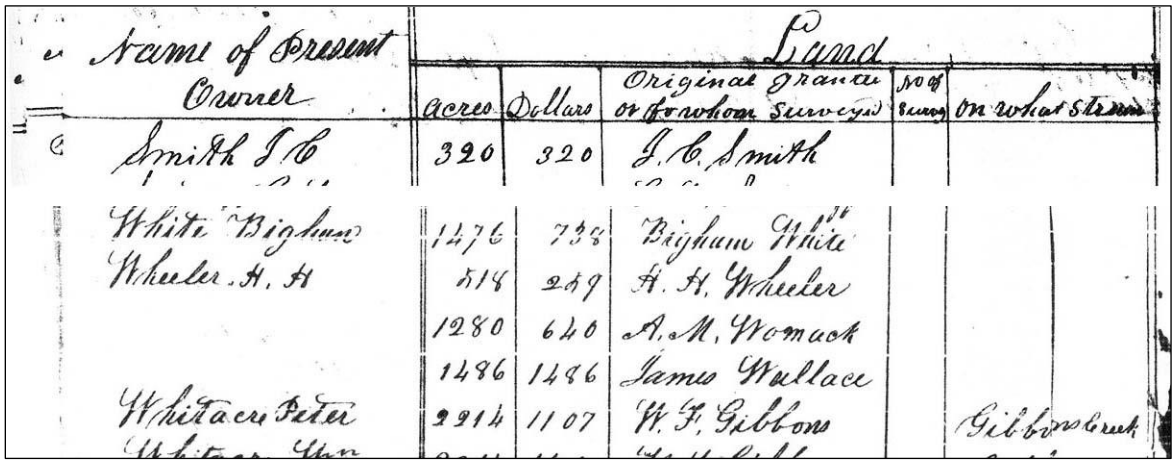
REPORT of CONDITIONAL CERTIFICATES issued by the Board of Land Comr's of Montgomery County, for the quarter ending June the 2nd 1842

No. of class of warrant.	No. of certificate.	TO WHOM ISSUED.	DATE OF EMIGRATION.	Quantity of land granted in acres.	NAMES OF WITNESSES.	WHERE ISSUED.	DATE OF CERTIFICATE.
Fourth	74	Rebecca Pugh	December 1841	640	Wm Blackmon & Caroline G. Blackmon	Montgomery	2nd May 1842
"	75	Daily Daniels	February 1840	320	Ed Arnold & A McNeill	" " "	" " "
"	76	Leroy Pierce	December 1841	320	J.P. Harrison & W D Blackmon	" " "	" " "
"	77	Wright Edmundson	" " "	640	Leroy Pierce & J P Harrison	" "	" " "
"	78	Peter Petree	July 1840	320	Smith McCammon & John G Cammon	" " "	" " "
"	79	Henry H Wheeler	November 1840	640	Alex. McBride & Geo W Weekly	" " "	" " "
"	80	John Wheeler	" "	320	Henry H Wheeler & " "	" " "	" " "

John's land was surveyed in June 1846. It was located in Montgomery County on Lake Creek, and "adjoining lands of John Landrum, James Bridgeman and J.R. Matthews." On 1 March 1847 he received the final patent for the land from Governor Pinckney Henderson. And on 22 Sep 1848 he sold the land to David S. Files.[101] See the original landowners map above for the location of John Wheeler's grant (in between the two blocks of grants of F.A.B. Wheeler).

Inexplicably, in 1846 H.H. Wheeler was listed on the Grimes County tax rolls with a significant amount of land:

Acres	Valued at	Surveyed for
518	$259	H.H. Wheeler
1280	$640	A.M. Womack[a]
1486	$486	James Wallace[b]



Name of Present Owner	Land: Acres	Dollars	Original Grantee or for whom surveyed	No of Survey	On what stream
Smith J. C.	320	320	J. C. Smith		
White Bigham	1476	738	Bigham White		
Wheeler H. H	518	259	H. H. Wheeler		
	1280	640	A. M. Womack		
	1486	1486	James Wallace		
Whitacre Peter	2214	1107	W. F. Gibbons		Gibbons Creek

The 518 acres listed above can be accounted for, however. 640 – 518 = 122 acres, and this 122 acres is the amount of land that he sold to Samuel Grimmet, and claimed as his partial headright, in a deed filed in Montgomery County:

"Henry H. Wheeler July the 27th 1843 }
-To- Republic of Texas }
Saml- Grimmett Montgomery County }

Know all men by these presents

That I Henry H Wheeler am held and firmly bound unto Samuel Grimmett in the penal sum of One Hundred Dollars Good and Lawful money for the true and faithful payment of which I bind myself my heirs, Executors Administrators and assigns, unto Saml Grimett his heirs Executors Administrators and assigns in testimony whereof I have hereunto set my hand and scroll day and date above written-

"The condition of the above obligation is such that whereas Henry H Wheeler has this day bargained and sold unto the aforesaid Saml Grimmett a certain tract or parcel of land lying in the County and Republic aforesaid bounded as follows, viz – Beginning 170 varas North of S E corner of J Landrums labor a stake from which a Post Oak 10 in dia. E W N 62° W 2 varas dist, and a pine 16 in. H [N?] W S 50° W 12 vas dist- Thence South with Files 170 to its corner 1530 to S E cor. of Grimmett on Landrum Line a stake from which an ash 18 in dia. marked S G bears N 43° E 40 vas. dist and an ash 18 in. dia. marked S G N 74° E 50 vas dist- Thence East W. S. S. 450 to Sanders S W corner a stake fr. wh. 170 post oak 14 in dia.

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a A 2nd Class headright certificate, with survey for 1280 acres, was issued to Abram M. Womack of Montgomery County on 18 October 1838 for land on Bedias Creek – see Texas GLO file #000022.

b A Spanish land grant was made to James Wallace in what was to become Grimes County. The English field notes indicates that the survey began on the NW corner of Groce's League survey (plantation) – Texas GLO file #SC 000008:64.

L. N. S. 58° W 10 vas. dist. Thence North 1530 set post from which a Pine 12 in. N 47° W 2 vas. and a Pine 24 in S. 57° E. 4 vas. dist. Thence West 450 to beginning – containing 122 acres more or less-[a]

"The above was surveyed by John M Wade Deputy Surveyor of M C.

"Now if the above bound Henry H Wheeler does make or cause to be made a good and sufficient title to the aforesaid Saml Grimmett so soon as a Patent can be obtained from the General Land Office to the above described land then this obligation to be null and void otherwise to remain in full force virtue and effect-

"Signed Scrolld and delivered in presence of- Henry D Wheeler (LS)

L. B. Folsom
A. B. Folsom
Calvin McCormick

Republic of Texas }
County of Montgomery } This day before me W H. Fowler Clerk of the County Court and Register of Deeds &c in and for said County came and personally appeared **Henry H Wheeler** who is well known ..."[102]

The fact that Henry H. Wheeler, alone, sold the above land, and that no wife was named as releasing her dower rights, could mean – if the County Clerk was not just being careless – that his wife had died before 1843.

The above tract of land is mentioned, with Henry H. Wheeler, in the Montgomery County probate records for Samuel Grimmett's estate:

"Grimmett, Samuel, deceased. R. B. Martin, Admr. 27 Jul 1843 – **Henry M.** [sic] **Wheeler** sells to Samuel Grimmett a tract of land of 122 acres, beginning north of the Southeast corner of Landrum's Labor. The above was surveyed by John M. Wade, deputy surveyor of Montgomery County. Bond $100. to supply a good and sufficient title to Grimmet. Recorded Book H:45, 46. 13 May 1847 – Notice of Administration Sale by George W. Brooks, special Admr., of the perishable & personal property of Samuel Grimmet, decd...."[103]

"25 Feb 1850 ... Estate of Sam'l Grimmett. Administrator: R.B. Martin. Administrator petitions for sale of 122 acres of land, *part of the headright* of **Henry H. Wheeler**, lying in this county, adjoining decedent's headright 640 acre grant; and the headright certificate of Cyrus Dikeman for 1280 acres, which petition (being the second one) contains a statement of the amount of claims and the amount of available money debts due the estate; and showing that the liabilities of estate to be greater than the means on hand for their payment, by $473.51. Court orders administrator to sell at public auction to the highest bidder the said 122 acres, part of the headright of **H. H. Wheeler** in Montgomery Co. adjoining decedent's headright..."[104]

"29 Apr 1850. Estate of Samuel Grimmett. Administrator: R. B. Martin. Petition of George M. Weekley, asking court to require Robert B. Martin to execute to him a title to 640 acres or one-half of the headright of Cyrus Dikeman for 1280 acres. 'It appearing to the Court from the Title Bond that said Grimmett bound himself and legal representatives to execute such title as soon as the Government issued a patent to said Dikeman for same.' Court orders R. B. Martin to deliver to G. M. Weekley a deed for said lands according to the bond; court further decrees that Weekley pay the cost of the proceedings. Administrator to take notice of this decree in making a sale of said land. Bond dated 17 Mar 1841 signed by Samuel Grimmett. Affidavit of David S. Files that he witnessed signature on above bond; **H. H. Wheeler** a witness."[105]

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[a] This description makes it appear that Henry H. Wheeler's 120 acres survey was located on the eastern edge (or maybe northeastern corner) of the Samuel Grimmett survey shown in the original landowners' map, above. Note that in the Samuel Grimmett estate account the 120, or122, acre survey of Henry H. Wheeler was described as being *adjacent* to Samuel Grimmett's grant.

The next year, 1847, both he and his son, John, were listed on the Grimes County tax rolls, each paying one poll, and neither credited with any land. In a scenario similar to that of F.A.B. Wheeler above, Henry H. Wheeler's name *never* appears in any Grimes County deed books. It appears that, again, similar to the tactics of F.A.B. Wheeler, he was dealing with untitled, but surveyed, land in the case of the two large properties listed above, and he apparently quickly sold them.

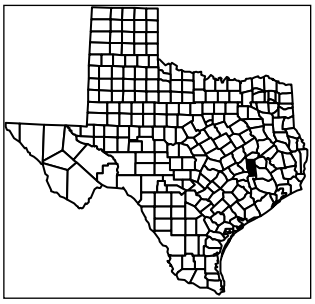
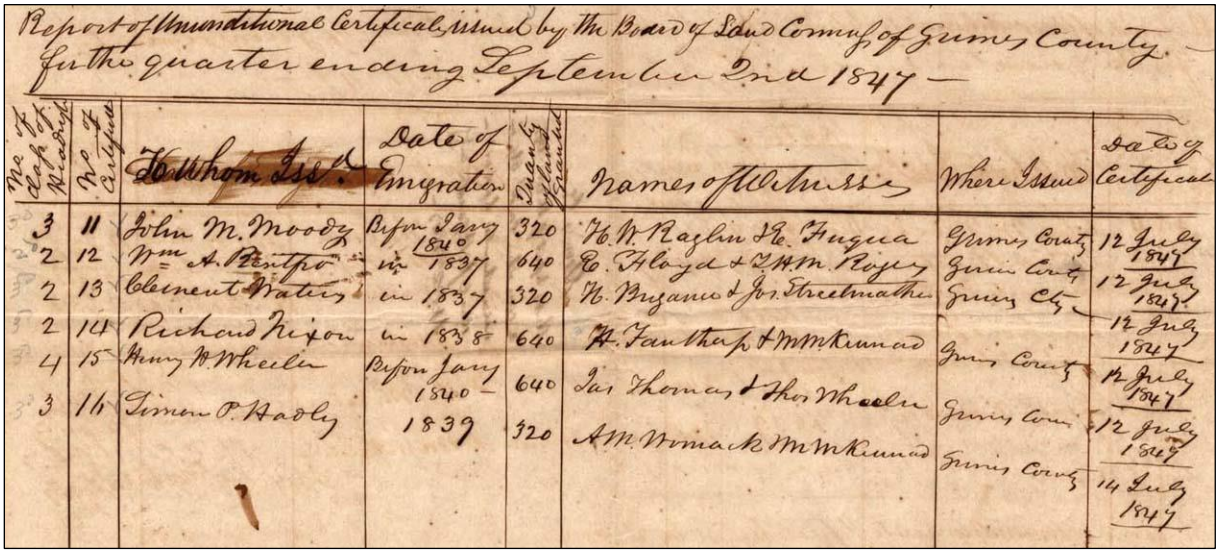


Fig. 13 Grimes County, Texas

In 1847, again, Henry H. Wheeler applied for a patent of land, this time in Grimes County (the earlier Montgomery County patent seems to have been "forgotten"):



Report of Unconditional Certificates issued by the Board of Land Comrs of Grimes County for the quarter ending September 2nd 1847 —

No. of Block of Headright	No. of Certificate	To Whom Iss'd	Date of Emigration	Quantity of Land Granted	Names of Witnesses	Where Issued	Date of Certificate
3	11	John M. Moody	Before Jany 1840	320	H. W. Raglin & R. Fugua	Grimes County	12 July 1847
2	12	Wm A. Pentpo	in 1837	640	E. Floyd & W. M. Rogers	Grimes County	12 July 1847
2	13	Clement Waters	in 1837	320	H. Bryant & Jos. Streetmatter	Grimes Cty	12 July 1847
2	14	Richard Nixon	in 1838	640	A. Faulkner & M. McKinnard	Grimes County	12 July 1847
4	15	Henry H. Wheeler	Before Jany 1840	640	Jas Thomas & Thos Wheeler	Grimes Coun	12 July 1847
3	16	Simon P. Hardy	1839	320	A. M. Wimack & M. McKinnard	Grimes County	14 July 1847

[**Comment:** It should be noticed in the above record that James Thomas and Thomas Wheeler were witnesses to the Henry H. Wheeler certification. *Who was Thomas Wheeler*?]

Sections of the following very important record are virtually impossible to read:

"County Court July Term A.D. 1847
The State of Texas
Grimes County N° 15
Fourth Class

"This is to certify that **Henry H. Wheeler** __ appear before us the Board of Land Commissioners for the County of Grimes and proved according ___ that he is entitled to an unconditional headright Certificate for Six hundred and forty acres of Land according to an Act to extend to late immigrants or those who may immigrate within a Specified time a donation of Land. Approved 4th January A.D. 1841 and Supplementary act approved 4th February 1842. Given under our hands at the Town of Alta-Mira this the 12th day of July A.D. 1847..." [106]

"State of Texas
Grimes County

In consideration of the sum of One(?) dollars unto me in hand paid by Jno. B. Harris of the county & state aforesaid the receipt whereof is hereby acknowledged I do hereby transfer, assign and set over, to the said Jno. B. Harris his heirs and assigns, all my right title and interest in and to the with___ instrument and I do hereby constitute the same Jno. B. Harris my attorney, in my name or otherwise and at his own costs to take all legal measures which may be proper or necessary, to the complete recovery and ___ of the assigned (premises/promises?) ___ my hand & seal this 12th day of July 1847. **H. H. Wheeler**" [107]

"The State of Texas
Grimes County On this the twentieth day of July A.D. one thousand eight hundred and forty seven Before the Land _____ of the County Court _____ and for _____ and State of Texas _____ appeared ___ State & County ___ Harris Whose name is affixed to the foregoing and written transfer made to a certain headright Land Certificate of **H. H. Wheeler** granted to him by the board of Land Commissioners of Grimes County for six hundred and forty acres Nº 15 Class Nº 4 bearing date the 12th day of July A.D. 1840 and Transferred by the said **H.H. Wheeler** to the said J.B. Harris on the 12th day of July A.D. 1847 and the said J.B. Harris do Transfer the said unconditional land right certificate of six hundred and forty acres to (blank) Who acknowledged that he signed sealed and delivered the same to (blank) on the day and date thereof as his proper act and deed for the purposes therein contained and stated. To authenticate which for record I have hereunto set my hand and Seal of office at the Town of Alta Mira this the 20th day of July A.D. 1847. David E. Harper Clk C, C, G.C." [108]

"State of Texas
Grimes County
In consideration of the sum of three hundred Dollars to me in hand paid by W. Von Rosenburg ___ the receipt _____ and assigns all _____ to the attached ___ commissioners in and for Grimes County (late Montgomery) for 640 acres of land granted to **H. H. Wheeler** and by him _____ transferred to me as fully appears on ___ certificate, and together with the all and every right by ___ assigned and or _____ of the said **H. H. Wheeler** _____ my hand this 20th day of July A.D. 1847. J.B. Harris..." [109]

On the forwarding cover sheet from the GLO, dated 1989, is a note at the bottom: "...On July 20, 1847, John B. Harris transfers the headright certificate or the right to locate the land to W. Von Rosenburg. Von Rosenburg located the land in Kaufman, Llano, and Williamson Counties and received the patent or final title to the land." With this information, and the information provided above we can then account for what happened to Henry H. Wheeler's original 640-acres headright:

County:	Kaufman	Llano	Williamson
Abstract Number:	598	682	672
District/Class	Nacogdoches 3rd	Bexar 3rd	Milam 3rd
File Number:	004132	007043	002380
Original Grantee:	**Wheeler, Henry H**	**Wheeler, Henry H**	**Wheeler, Henry H**
Patentee:	Von Rosenberg, William	Von Rosenberg, William	Von Rosenberg, William
Patent Date:	19 Nov 1873	29 Jan 1875	10 Jun 1874
Patent No:	474	445	121
Patent Vol.:	41	42	42
Certificate:	15	20/12	19/154
Acres:	162	318.20	159.80

162 + 318.2 + 159.8 = 640! Forgotten in all this was the 120, or 122 acres, that Henry H. Wheeler sold Samuel Grimmett from this same headright!

In 1848 again H.H. and John Wheeler were listed as paying one poll, but having no land. Henry H. Wheeler did not appear in the tax rolls of Grimes County (or anywhere else that we know of) after 1848.

But we do not seem to be done with the "funny" headrights of Henry H. Wheeler, because he apparently had a survey done in his name in 1854:

> "The State of Texas
> County of San Patricio
> "Survey for **Henry H. Wheeler** of 640 acres of land situated in McMullen County and fronting on the North Side of the Nueces river in the County of San Patricio, about 12 miles above the junction of the Rio Frio with the Nueces, being the quantity of land, to which he is entitled by virtue of Unconditional Head-right Certificate No. 15 Class 4th issued by the Board of Land Commissioners for the County of Grimes, to the said **Henry H. Wheeler**, dated July 12th A.D. 1847.
>
> "Beginning at the S.E. corner of a Survey in the name of Francisco Guzman, a stake for the S.W. corner of this survey/ from which an Ash 10 inches diameter marked X bears S 86° E 5 ¾ vs. and a Willow 8 inches diameter marked H bears S 33° W. 3 vs.
>
> "Thence down the Nueces river with its meanders N 36° E 50 vs. N 18° W 160 vs. N 33 E 120 vs. N 58° W 139 vs. N. 8° E. 6 vs. N 52° E 120 vs. N 12° 240 vs. N 25 E 240 vs. N 70° E 40 vs. S 75° E 80 vs. S 30° E 100 vs. N 40° E 100 vs. S 57° E 80 vs. N 44° E 100 vs N 82° E 90 vs. to a Stake for the S.E. corner from which an Ash 10 inches diameter marked A bears S 57° E 3 vs. and an Elm 11 inches diameter marked X bears N 32° 11 vs.
>
> "Thence N 30° W at 3763 vs. set post in mound for the N.E. corner.
>
> "Thence S 60° W. at 950 vs. set post in mound for the N.W. corner.
>
> "Thence S 30° E at 880 vs. the N.E. corner of Said Survey in the name of Francisco Guzman, then with N. E. boundary line of said survey 4338 vs. to the place of beginning.
>
> J. M. Sandoval } Chain carriers
> Trinidad Ortez }
>
> "I wm R. Reid Surveyor of the County of San Patricio do solemnly swear under my official Oath that the survey designated in the foregoing plat and field notes was made by me on the 12th day of April 1854, and that the lines, boundaries, and corners of the same, together with the marks natural and certified are truly ascribed therein. Given under my hand this 27th day of April 1854..." [110]

[**Comment:** OK, I admit I simply do not understand all the foregoing. It seems that Henry H. Wheeler applied for a 640 acre headright in Montgomery County and sold 122 acres of this to Samuel Grimmett. In 1846 he still controlled the remaining 518 acres, which apparently had been surveyed in Grimes County. But in 1847 he applied *again* for a 640 acre headright, this time in Grimes County. He seemed to immediately transfer this to John B. Harris, who in turn sold it to W. Von Rosenburg, who eventually obtained the clear title to it in three separate patents. But *in 1854* Henry H. Wheeler had a survey done for him in what was then San Patricio County citing as his authority for the survey the same certificate of eligibility. There does seem to have been some monkey-business going on!

San Patricio County, as it exists today, is just northwest of Corpus Christi. McMullen County was created in 1858 from Atascosa, Bexar, and Live Oak counties. Live Oak County was created in 1856 from Nueces and San Patricio counties. On a present-day detailed map and topographical chart, and as nearly as I can determine from the description, the above survey was very near the upper end of Choke Canyon Reservoir.]

In 1849 John Wheeler was listed on the Grimes County tax rolls with 1 horse, and 17 cattle. But in 1850 through 1853 he was listed once again with no property, but paying one poll. On 1 Mar 1851, Elizabeth Ford sold to John Wheeler for $82.25, 85 acres "beginning at the S.W. corner of **James Thomas**' survey..."[111] and on 11 August 1854 John and Elizabeth Wheeler sold the same land

for $300 to John H. King.[112] It is interesting that he bought the land in 1851 but it did not show up on the Grimes County tax rolls until 1854 when John Wheeler was credited with 85 acres on Lake Creek. John Wheeler never again appeared in either the tax rolls or the deed books of Grimes County.

The 1850 and 1860 Grimes County censuses are revealing, and when examined in detail reveal a family tragedy involving the John Wheeler family. The 1850 census lists **H.H. Wheeler** and Mary Ann Wheeler, age 15, living in the **James Avery Thomas** [Chapter 19] household. **Henry** listed his occupation as a "Laborer." The Mary Ann Wheeler living in the Thomas household with **Henry H.** is a mystery. If she was indeed 15 years old, then she would have been too old to have been John and Elizabeth Wheeler's daughter. *She appears to be, then, a previously unknown daughter of **Henry H. Wheeler**, and she is probably the Mary Wheeler that married Joseph B.T. Johnson on 19 November 1856.*[a]

John Wheeler lived two households away (in 1850). He was listed as age 27, occupation "none," with his wife Elizabeth, age 26, and son Joseph H. Wheeler, age 4 months.

It is when we get to the 1860 census that the John Wheeler family tragedy becomes apparent. John Wheeler was not listed in the 1860 census (perhaps because he had died in 1859 – see below), but his wife Elizabeth, age 35, was living in the **James Avery Thomas** household and listed as "insane" and a "pauper." And it is the latter information that prompts the researcher to look further into what was going on with the John Wheeler family and which is provided in the following three records:

> "Elizabeth Wheeler
> By
> John Wheeler
>
> "Whereas on the 16th day of March, 1858, came John Wheeler by attys and filed an information that his wife, Elizabeth Wheeler was a person non compos mentis[b] and incapable of managing her own affairs and praying the court to inquire into the facts set forth in said information and for such relief as the statutes in such cases provides and the court believing such information to be true the said Elizabeth Wheeler was caused to be brought into open court by the sheriff of the county and said sheriff ordered to summon twelve competent jurors of said county for the trial of the facts set forth in said information and upon hearing and trial of this cause, twelve competent jurors towit: John G. Chatham and eleven others of said County who being sworn to inquire into and a true verdict render upon the cause submitted according to the said Elizabeth Wheeler and the jury having heard and considered the evidence touching the facts submitted to them for trial and having examined the said Elizabeth Wheeler in person for their verdict say: We the jury impaneled to try the sanity of Elizabeth Wheeler find that the said Elizabeth is a person no compos mentis and incapable of managing her own affairs March 29th 1858.
>
> J. G. Chatham, foreman
>
> "Wherefore it is ordered and decreed by the court that E. W. Cawthon be and is hereby appointed Guardian of the estate of said Elizabeth Wheeler upon his giving the bond and taking the oath required by law."[113]
>
> "Elizabeth Wheeler
> Non Compis Mentis

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a The 1860 census of Falls County lists the household of J.B.T. Johnson, age 42, born SC, with wife Mary, age 23, born AL. The first three children listed appear to be Joseph Johnson's by an earlier wife: A (female), age 12, b. MS, Ann (age11), b. MS, and James, age 10, b. MS. The last two children appear to be Joseph and Mary (Thomas) Johnson's children: Henry, age 3, b. TX and Pheby, age 1, b. TX.

b Roget's II: Thesaurus: "Afflicted with or exhibiting irrationality and mental unsoundness" Idioms: "around the bend, crazy as a loon, mad as a hatter, not all there, nutty as a fruitcake, off (or out of) one's head, off one's rocker, of unsound mind, out of one's mind, sick in the head, stark raving mad."

By
E. W. Cawthon

"This day E. W. Cawthon executed his bond as Guardian of Elizabeth Wheeler a person non compis mentis in the sum of two thousand dollars with H. H. Boggess and John D. Watson as securities which bond was approved by the court and ordered to be filed and recorded and the said Cawthon having taken and subscribed the oath required by law as said Guardian, it is ordered that letters of guardianship issue to said Cawthon upon the estate of said Elizabeth Wheeler Whereupon the corresponding letters issued."[114]

[2 June 1858]
"John & *Sarah* Wheeler's
Infant child.

"Whereas, information has been furnished this court that the infant daughter of John and Elizabeth Wheeler of this County has been adandon and disowned by said John Wheeler the husband of said Elizabeth and that said Elizabeth has upon legal investigation has been declared a lunatic and a pauper[a] And whereas, Charles A. Barton[b] a citizen of this county has expressed his willingness to take charge of said infant and rear keep and support her free of charge to the County. It is ordered and decreed that said Charles A. Barton be and is hereby appointed guardian of the person of said infant and is hereby authorized and required to take charge of her and exercise all necessary control and authority of her for her well being."[115]

The actual 1860 census page listing the James Avery Thomas household is shown below. The reader is now requested to focus in on the 5th and 6th children listed, who appear to be listed as "Jane" and "Charles." These two children's ages are the same, and the number representing their ages appears to be a "4." But the number 4 is not written the same as the "4" in James Thomas's age (49, or 48?), or for son John's age (14). In fact, and not shown, on the page but in other households, the number "8" appears to be written the same way as what appears to be a "4" is written for Jane and Charles.

The known children of James and Amanda Thomas [Chapter 19] *does not* include two children who are twins, but *does* include a son, Francis Marion, born between Catherine and Charles, who would have been 8 years old (born 9 August 1852) when the 1860 census was taken, so a child listed as 8 years old would be correct for him. But the name as plainly written on the census was neither "Francis" nor "Marion," and the gender was clearly written as "f" (female).

---

a I have to wonder why the court would describe a married woman as a "pauper," unless 1) John Wheeler had died, 2) John Wheeler had abandoned his family and was beyond the reach of the county court's jurisdiction, or 3) John Wheeler had divorced Elizabeth Wheeler. Divorces were extremely rare in that time, and in any case Grimes County divorce records only begin in 1892. Divorce seems to be the least likely explanation, but see the probate record below for a John Wheeler, deceased, of Montgomery County for a possible explanation that might account for possibilities 1) and/or 2).

b Charles Barton did not acknowledge that he was the father of the child (as I had earlier presumed), but this record certainly suggests that he *might have been* the father.

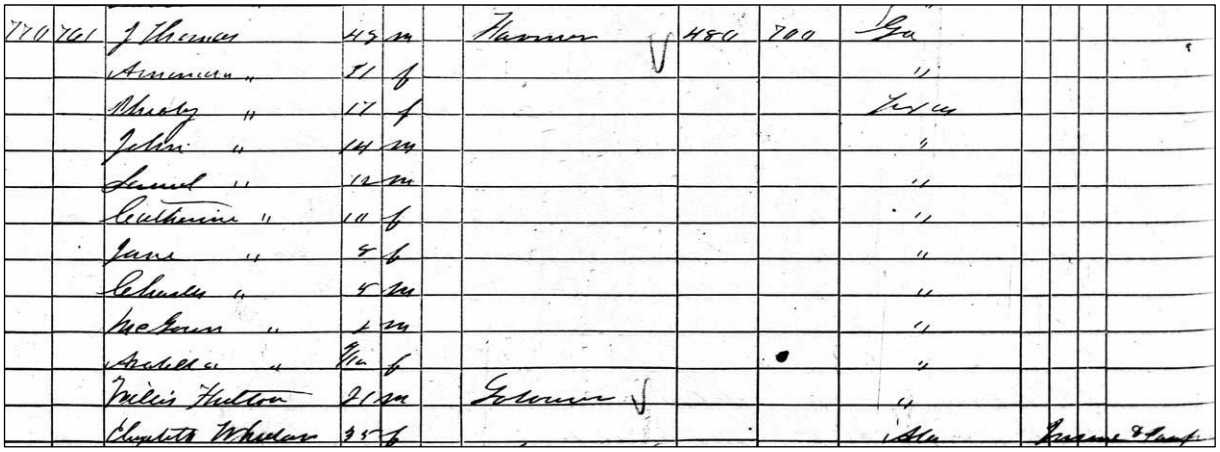

Fig. 14 James Avery Thomas household in the 1860 Grimes County census

Charles was born 9 March 1855, so a "4" for his age would be about right. Again, whatever was intended, the ages of "Jane" and "Charles" appear to be written the same, and the gender was denoted as "f" for "Jane," and "m" for Charles. Whoever "Jane" was in the above listing, it does not appear to have been "Francis Marion." (Which, of course, precipitates the question of where was Francis Marion in the 1860 census – he has not been found yet in the census for that year.)

So, if "Jane" is not "Francis Marion" then who could she be? I think a possible answer to that question is that this might well be Sarah *Jane* Wheeler, *known* (see below) daughter of John and Elizabeth (Landrum) Wheeler, who was born 5 September 1855, and was therefore approximately the same age as Charles Thomas, and who has not been found living with anyone else.

However one reads and interprets the above census information, he/she is left with ambiguities that I cannot presently resolve; either Sarah Jane Wheeler, or Francis Marion Thomas is missing from the 1860 census.

In the household between James Thomas and John Wheeler in the 1850 Grimes County census was the same Charles Barton involved in the paternity suit mentioned above, age 27, born in England, with wife Sarah Ann, age 22, born in *Georgia*, and a daughter named Amanda L., age 2 months. In 1860 this same Charles Barton, age 37, with wife Sarah A., age 27, born in *Alabama*, had living in their household – besides one son named James J. – two Wheeler children: James A., age not readable[a] but attending school, and Amanda J., age 2, both apparently the children of John and Elizabeth Wheeler, i.e., we know from probate records below that James Avery

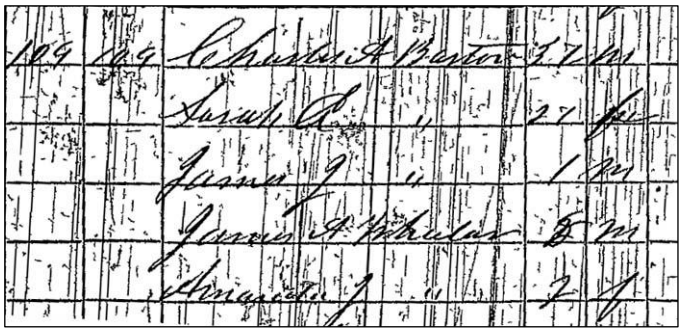

Fig. 15 Grimes County 1860 census - Charles A. Barton household

[a] Some people read his age as "8."

Wheeler was a son, and Amanda J. very much appears to have been the child involved in the above paternity case.

One can speculate whether Sarah Ann/A. Barton was, in fact, possibly another daughter of Henry Wheeler:

1) In the 1850 Grimes County census, Charles Barton and wife, Sarah Ann, were living (as listed) *between* the households of James Avery Thomas family (in whose household H. H. Wheeler lived), and the household of John Wheeler, and
2) Sarah Ann/A. Barton said she was 22 and born in Georgia in the 1850 census, and said she was 27 and born in Alabama in the 1860 census. Which is correct? We know that the Henry Wheeler family was still living in Georgia in 1828 (if 22 in 1850 was the correct age), and we know that the Henry Wheeler family was living in Alabama in 1833 (if 27 in 1860 was the correct age). The latter possibility would fit more closely with the 1830 census data of the Henry Wheeler household in Alabama, where there was only one daughter (Amanda) living in the household at that time. Therefore a postulated Sarah Ann, born ca. 1833, would fit very nicely between the birth of Amanda (1827) and Mary Ann (ca. 1835 – see below), when otherwise there would appear to be a large gap in the birth of known children that would otherwise most likely be explained by children who died early.

After the 1850 census, no further *certain* records have been found for Henry H. Wheeler in Grimes County. But as shown above, he apparently had a survey done for him in San Patricio County in 1854. We do not know where he was living at the time: he was not listed in the 1860 census for San Patricio County. Completely out-of-the-blue an "H. H. Wheeler" appears on the 1861 tax list of Grimes County, paying one poll; he never appears again. I cannot be sure whether this is our Henry H. Wheeler or not.

John Wheeler is last found in the 1860 tax list in Grimes County, listed as paying one poll, and having no land. It is not at all uncommon, depending upon the quickness of the county tax assessor to update his tax list, for a person to be listed on the tax list up to a year after that person died[a].

There is nothing inherent in the probate papers below[b] that identifies the following John Wheeler as the son of Henry H. Wheeler. But the fact that the following John Wheeler died so soon after Henry's son John disappeared, and the fact that I can find no other John Wheeler in the area at this time, strongly suggest to me that the following records might refer to John Wheeler, the son of Henry H. Wheeler.

"Packet #429 *Wheeler, John*, deceased.
.W. Surghnor, Admr.
Filed 14 Dec 1859 – Petitioner for Letters of Administration, L. W. Surghnor, states that those first entitled to Letters has declined and asks that Letters of Administration be granted him.
Filed 28 Dec 1859 – Bond $500. Loyd W. Surghnor, principal. H. E. Springer, Surety. Oath. Rec. H: no page number given.

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[a] Tax lists are lists of persons owing taxes, rather than of persons paying taxes.

[b] I have examined the actual Probate Packet. There is not much to it, and I recognized no clues that would confirm that the John Wheeler who died in Montgomery County was the same person who had earlier been in Grimes County. On the other hand, there was no evidence that I could recognize that he was not.

Filed 31 Dec 1859 – Inventory. Appraisers: J. M. Hall & E. L. Carson. Rec. H: 735, 736.
Filed 31 Dec 1859 – Petition to sell property.
Filed 31 Dec 1859 – List of claims.
Filed 1 Feb 1860 – Return of Sales. Rec. H: 738-746"[116]

Henry H. Wheeler and Mary Ann Sawyer were the parents of four likely, or known, children, and one possible additional child:

1. John Wheeler; b. ca. 1823;[a] d. bef. Dec 1859(?); m. Elizabeth Landrum (dau. of Joseph L. Landrum and Mary Boon[b] of Houston Co.[117]) bef. 1849[c]

   Proof that John Wheeler married Elizabeth Landrum, daughter of Joseph L. Landrum is found in the probate records of Joseph L. Landrum of Houston County:

   > "…August 29th 1866 … James Wheeler & Sarah Jane Wheeler, minor heirs, Elizabeth Wheeler dec'd. One share … It is further ordered that … James Wheeler & Sarah Jane Wheeler, of Grimes County be cited to be and appear at the next term of this court…"[118]

   > "…January 5th 1867 … We set apart to Sarah Jane & James Wheeler the minor heirs of John & Elizabeth Wheeler 320 acre tract of land in Houston County the H R of James M. Love, valued at $480.00…"[119]

   Reconstructing the children of John and Elizabeth (Wheeler) Landrum from census records, the above probate records, and other (conflicting) information:

   a. Joseph H. Wheeler; b. ca. 1850;[120] apparently died as a child[d]
   b. James Avery Wheeler; b. 1852; d. 1921[e]; m. Mary G. Mullins 28 Aug 1878 in Grimes Co.[121]
   c. Sarah Jane Wheeler[f]; b. 5 Sep 1855; d. 30 Apr 1935 in Jones Co., TX;[122] m. William Franklin Martin (1848-1932) 20 Sep 1870 in Grimes County[123]
   d. Amanda J. Wheeler; b. ca. 1858

   It should also be remarked that by 1866, the date of the first probate above, it is clear that Elizabeth (Landrum) Wheeler had died, and that the only two surviving children were James Avery Wheeler and Sarah Jane (Wheeler) Martin.

2. (son) Wheeler, b. ca. 1825; d. aft. 1830[g]

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a He stated he was 27 years old in the 1850 Grimes County census.

b Joseph Landrum was the son of John Landrum, the latter of whom died 1816-1818 in Clarke Co., Alabama. As such Joseph was the nephew of Zachariah Landrum who first settled in the Lake Creek Settlement area of Montgomery County, Texas. See the Thomas family history for more on the Landrum family.

c Estimate of date of marriage based on the fact that they had a 4-month-old son in the 1850 census. They may have been married considerably earlier since Elizabeth's father is known to have lived in Robertson (then Leon and Houston) County as early as 1841, and that fact does not suggest a scenario where John Wheeler and Elizabeth could have conveniently met.

d Not found in the 1860 census or elsewhere.

e J. A. Wheeler, age 67, with wife Mary G., age 66, are listed in the 1920 Grimes County census living in the town of Navasota. James A. Wheeler (1852-1921), and Mary G. Wheeler (1852-1937) are both buried in Navasota's Oakland Cemetery.

f It is not perfectly clear that Sarah Jane and Amanda J. were not the same person, but at this time I do not think they were the same person. Amanda J. Wheeler, age 2, is found listed in the household of Charles A. Barton with her brother, James A. Wheeler, in the 1860 Grimes County census. See discussion above – Sarah Jane Wheeler *might have* been living with the James Avery Thomas family in 1860. There is no doubt from the above probate records, that there *was* a Sarah Jane Wheeler who was a daughter of John and Elizabeth (Landrum) Wheeler. Amanda J. Wheeler, if a different person, might have continued living with the Charles A. Barton family, who disappeared after 1860, if she really was Charles Barton's daughter.

g A 0-5 year-old son was listed in the Henry Wheeler household in the 1830 Montgomery County, Alabama census.

3. **Amanda Wheeler**; b. 15 May 1827;[124] d. 5 Sep 1896;[125] m. **James Avery Thomas** [Chapter 19] 28 Apr 1842 in Montgomery Co., Tx. [126]

4. (?) Sarah Ann Wheeler[a]; b. ca. 1833; m. 1) Charles A. Barton ca. 1859, (?[b]) 2) Alphonso Herve 14 Jul 1864[127]

   The only known children of Charles A. Barton and Sarah Ann Wheeler(?) of whom we know were the James J. Barton, age 1 month, listed in the 1860 census, and the Amanda L. Barton, age 2 months, in the 1850 census (who would appear to have died prior to 1860).

5. Mary Ann Wheeler; b. ca. 1835[c]; d. aft 1900; m. 1) Joseph B.T. Johnson 19 Nov 1856 in Grimes Co., TX,[128] 2) James May 21 Apr 1864 in Grimes Co., TX[129]

   The Joseph B. T. Johnson family can be found on the 1860 census of Falls County, Texas, enumerated as:
   J.B.T. Johnson, age 42, b. SC
   Mary Johnson, age 23, b. AL
   A. Johnson (female), age 12, b. MS
   Ann Johnson, age 11, b. MS
   James Johnson, age 10, b. MS
   Henry Johnson, age 3, b. TX
   Pheby Johnson, age 1, b. TX

   It is rather obvious that Joseph Johnson had been previously married, and that the first 3 children in the above household were from his first marriage, and that the last 2 children where his and Mary Ann (Wheeler) Johnson's.

   In the 1880 Grimes County census, Mary Ann May was once again a widow, when she is listed as age 46, b. Georgia (but father and mother born in Alabama), with two children: Anna W. and Samuel A. J., both 11 years old.

   Mary Ann (Wheeler) Johnson-May and James (Jim) May are both buried in Mustang Cemetery.

Amanda Wheeler, daughter of Henry H. Wheeler and Mary Ann Sawyer, was born 15 May 1827 in Georgia. On 28 April 1842 she married James Avery Thomas in Montgomery County, Texas.

[See the Thomas family history, Chapter 19, for a continuation of the Wheeler family lineage.]

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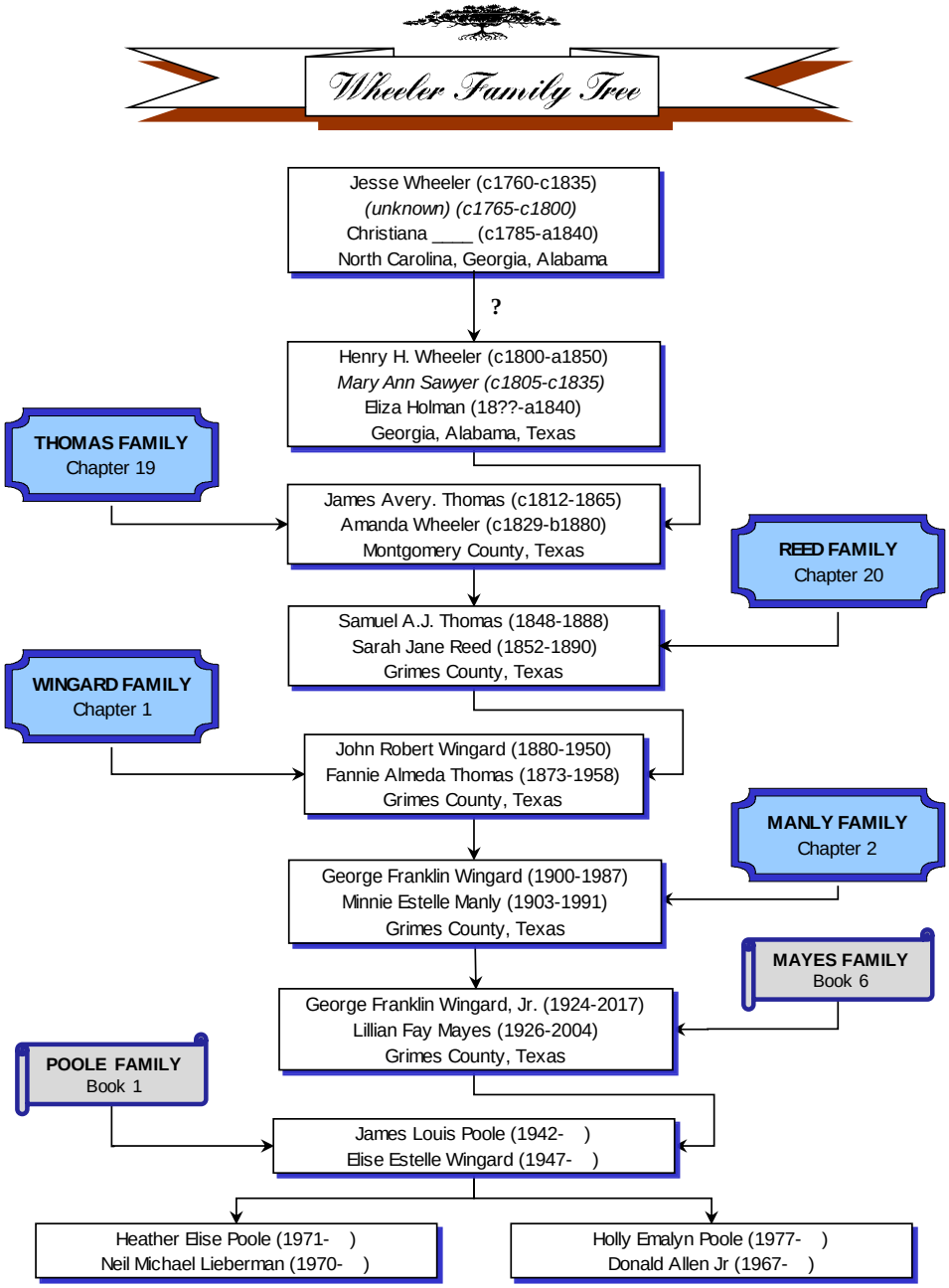
a See discussion above. It cannot be proven that Sarah Ann was a daughter of Henry H. Wheeler, but the circumstantial evidence suggests that *she might have been*.

b Charles A. Barton, and family, cannot be found anywhere after the 1860 census. But in 1864, "S. A. Barton" married Alphonso Herve in Grimes County, suggesting that Charles Barton had died (in the Civil War?) and that Sarah Ann (Wheeler) Barton had remarried.

c Listed as age 15 in the 1850 census, living in the household of James Avery Thomas with her father Henry H. Wheeler.


Wheeler Family Tree
Jesse Wheeler (c1760-c1835)
(unknown) (c1765-c1800)
Christiana ____ (c1785-a1840)
North Carolina, Georgia, Alabama
?
Henry H. Wheeler (c1800-a1850)
Mary Ann Sawyer (c1805-c1835)
Eliza Holman (18??-a1840)
Georgia, Alabama, Texas
THOMAS FAMILY
Chapter 19
James Avery. Thomas (c1812-1865)
Amanda Wheeler (c1829-b1880)
Montgomery County, Texas
REED FAMILY
Chapter 20
Samuel A.J. Thomas (1848-1888)
Sarah Jane Reed (1852-1890)
Grimes County, Texas
WINGARD FAMILY
Chapter 1
John Robert Wingard (1880-1950)
Fannie Almeda Thomas (1873-1958)
Grimes County, Texas
MANLY FAMILY
Chapter 2
George Franklin Wingard (1900-1987)
Minnie Estelle Manly (1903-1991)
Grimes County, Texas
MAYES FAMILY
Book 6
George Franklin Wingard, Jr. (1924-2017)
Lillian Fay Mayes (1926-2004)
Grimes County, Texas
POOLE FAMILY
Book 1
James Louis Poole (1942-)
Elise Estelle Wingard (1947-)
Heather Elise Poole (1971-)
Neil Michael Lieberman (1970-)
Holly Emalyn Poole (1977-)
Donald Allen Jr (1967-)

Notes & References

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1 "Montgomery County, Texas, Marriage Records, 1838-1894" — Montgomery County Genealogical Society, ***The Herald***, 1977, p. 55; Grammer, Norma Rutledge, ***Marriage Records of Early Texas, 1824-1846***, p. 61.

2 See Cox, Jack F., ***History of Sumter County, Georgia***, W.H. Wolfe Associates, Roswell, Georgia, 1983, for information, including a somewhat complete list of descendants of Avery Wheeler.

3 Williams, Villamae, ***Stephen F. Austin's Register of Families.***

4 1800 census of Chatham County, North Carolina, p. 168.

5 1800 census of Chatham County, North Carolina, p. 204.

6 1800 census of Chatham County, North Carolina, p. 204.

7 1800 census of Chatham County, North Carolina, p. 205.

8 1800 census of Chatham County, North Carolina, p. 210.

9 1790 census of Chatham County, North Carolina, p. 85.

10 1810 census of Chatham County, North Carolina, p. 347.

11 1810 census of Iredell County, North Carolina, p. 473.

12 "P. 35" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1771-1782***, p. 35.

13 "P. 56" – Laird, Marilyn Poe, ***Chatham County, North Carolina, Court Minutes, 1774-1779***, p. 23.

14 "P. 91" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1771-1782***, p. 38.

15 "P. 95" – Laird, Marilyn Poe, ***Chatham County, North Carolina, Court Minutes, 1774-1779***, p. 38.

16 "Page 10" – Puritt, Dr. A. B., ***Abstracts of Land Entries: Chatham Co., NC 1778-1790***, p. 6.

17 "P. 253" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1771-1782***, p. 58.

18 "P. 333" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1771-1782***, p. 66.

19 Puritt, Dr. A. B., ***Abstracts of Land Entries: Chatham Co., NC 1778-1790***, p. 88.

20 "P. 4A" – Laird, Marilyn Poe, ***Chatham County, North Carolina, Court Minutes, 1781-1785***, p. 3.

21 "P. 424" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1771-1782***, p. 80.

22 "P. 219 (bottom)" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1780 – 1785***, p. 48

23 "P. 38" – Laird, Marilyn Poe, ***Chatham County, North Carolina Deeds, 1783-1788***, pp. 21-22.

24 "P. 22" – Jackson, Vivian Poe, ***Chatham County, North Carolina Court Minutes, Vol. 3, Feb 1785-May 1785, May 1790-Aug 1792***, p. 20.

25 "Chatham County Deed Book G, p. 409" – Willis, Laura, ***Chatham County, N.C. Early Deeds, Volume Five, 1792-1796***, p. 36.

26 "P. 50" – Hofmann, Margaret M., ***Abstracts of Deeds, Edgecombe Precinct, Edgecombe County, North Carolina, 1732 through 1758***, p. 78.

27 "P. 293" – Hofmann, Margaret M., ***Abstracts of Deeds, Edgecombe Precinct, Edgecombe County, North Carolina, 1732 through 1758***, p. 100.

28 "P. 117" – Hofmann, Margaret M., ***Abstracts of Deeds, Edgecombe Precinct, Edgecombe County, North Carolina, 1732 through 1758***, p. 51.

29 Halifax County, North Carolina, Will Book 1, p. 38. For an abstract see Hofmann, Margaret M., ***Genealogical Abstracts of Wills, 1758 through 1824, Halifax County, North Carolina***, p. ??

30 Halifax County, North Carolina, Will Book 3, p. 119. For an abstract see Hofmann, Margaret M., ***Genealogical Abstracts of Wills, 1758 through 1824, Halifax County, North Carolina***, p. 73.

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[61] Hartz, Fred R. & Emilie K., ***Genealogical Abstracts from the Georgia Journal (Milledgeville) Newspaper, 1809-1840, Volume Two 1819-1823***, p. 478.

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[63] Information provided by Jean Liberty, a descendant of Avery Wheeler, in email message dated 3 Aug 2003.

[64] Information obtained from the Baldwin County GenWeb (Internet) site.

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[67] Evans, Tad, ***Milledgeville, Georgia, Newspaper Clippings (Southern Recorder), Volume I, 1820-1827***, p. 166.

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[75] *Harris County, Georgia, And Her People: A Genealogical/Historical Quarterly*, Vol. 2, No. 2 & 3, Spring & Fall 1986, p. 63.

[76] Donna Durfey of Montgomery County, Texas, in an email dated 29 Jul 2003.

[77] Gandrud, Pauline Jones, ***Alabama Records, Volume 243, Butler County***, p. 84.

[78] "Montgomery Co., AL, Marriage Book D, p. 47" — Gandrud, Pauline Jones, ***Alabama Records, Vol. 174, Marriages, 1823-37***, p. 32: "Wheeler, Henry to Eliza Holman. 1 January 1840 (return dated 5th) by Richard Boyd, J.P."

[79] "Montgomery Co., AL, Marriage Book D, p. 47" — Gandrud, Pauline Jones, ***Alabama Records, Vol. 174, Marriages, 1823-37***, p. 32: "Wheeler, Henry to Eliza Holman. 1 January 1840 (return dated 5th) by Richard Boyd, J.P."

[80] Dates of birth and death from his grave marker in the Dean Cemetery near Leigh, Harrison County, Texas. "A private cemetery. Take I-20 east to exit 628. Go north on FM 134. From the junction of FM 134 and FM 1999, take FM 1999 east approximately 4.5 miles. Take the last road on the left before the power lines and follow it about .3 miles. The cemetery is on the south side of the road, just before the power lines."

[81] Date of birth information derived from the 1850 census data of Bradley County, Arkansas, where he stated he was 37 years old.

[82] Date-of-death information provided by Lynn Groves in an email dated 26 Aug 2003 citing as source the probate records of Bradley Co., Ark..

[83] "Montgomery Co., AL, Marriage Book E, p. 53" — Gandrud, Pauline Jones, ***Alabama Records, Vol. 196, Marriages, Mar 1836 – Apr 1842***, p. 63: "Elias Wheeler to Hannah Johnston. 26 Sep 1832 (executed 2 Oct) by Levi D. Eilands, J.P."

[84] "Montgomery County Deed Book E, pp. 130-132" — Montgomery County Genealogical & Historical Society, ***Montgomery County, Texas, Deeds, Books A-E, 1831-1840***, p. 84.

[85] Montgomery County Genealogical & Historical Society, ***Montgomery County, Texas, District Court Records, Book A, Fall Term 1838-1845***, p. 19.

[86] Texas General Land Office, file #000167, abstract #102, patent #538 (vol. 4), certificate #416.

[87] Texas General Land Office, file #000305, abstract #551, patent #268 (vol. 5), certificate #214.

[88] Texas General Land Office, file #000125, abstract #606, patent #27 (vol. 4), certificate #124.

[89] Texas General Land Office, file #000131, abstract #623, patent #704 (vol. 11), certificate #35.

[90] Montgomery County Deed Book L, pp. 415-416.

[91] Texas General Land Office file #000370, abstract #415, patent #280, dated 27 Feb 1847, patent volume 5, certificate #6.

[92] Texas General Land Office file #000125.

[93] Texas General Land Office file #000125.

[94] Texas General Land Office file #000370, abstract #415, patent #280 (vol. 5), certificate #6.

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[97] Moore, Stephen L., ***Savage Frontier, 1840-1841***, pp. 48-51.

[98] "Montgomery Co., AL, Marriage Book E, p. 53" — Gandrud, Pauline Jones, ***Alabama Records, Vol. 196, Marriages, Mar 1836 – Apr 1842***, p. 63: "Elias Wheeler to Hannah Johnston. 26 Sep 1832 (executed 2 Oct) by Levi D. Eilands, J.P."

[99] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[100] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[101] Montgomery County Deed Book T, p. 335.

[102] Montgomery County Deed Book H, p. 45.

[103] Montgomery County Genealogical & Historical Society, ***Montgomery County, Texas, Probate Minutes, 1838-1851***, pp. 86-87.

[104] "Book E, pp. 171-172" — Montgomery County Genealogical & Historical Society, ***Montgomery County, Texas, Probate Minutes, 1838-1851***, pp. 80-81.

[105] Montgomery County Genealogical & Historical Society, ***Montgomery County, Texas, Probate Minutes, 1838-1851***, pp. 90-91.

[106] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[107] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[108] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[109] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[110] Copy of original record at the Texas General Land Office provided by Frances E. Goodman of Houston, Texas.

[111] Grimes County Deed Book A-2, p. 420.

[112] Grimes County Deed Book A-2, p. 463.

[113] Grimes County Probate Book 3A, pp. 328-329.

[114] Grimes County Probate Book 3A, p. 352.

[115] Grimes County Probate Book 3A, p. 368.

[116] "Montgomery County Probate Packet #429" – Montgomery County Genealogical & Historical Society, ***Montgomery County, Texas, Probate Records, Black Box Document: 1857-1867, Volume III***, p. 43.

[117] Information provided by Frances E. Goodman, a descendant, in email dated 24 August 2003.

[118] Houston County Probate Minutes, Book G, pp. 148-149.

[119] Houston County Probate Minutes, Book G, p. 200.

[120] Grimes County 1850 census of the John Wheeler household.

[121] Grimes County Marriages, 1871-1879, Volumes K-L, Film Number 1006281.

[122] Dates of birth and death from her grave marker in the Mount Hope Cemetery of Anson, Jones County, Texas., and from her death certificate.

[123] Grimes County Marriages, 1879-1882, Volumes M-N, Film Number 1006509, Book N, p. 68.

[124] Information from the headstone of "Mrs. Amanda Thomas" in the Mustang Cemetery in northern Grimes County.

[125] Information from the headstone of "Mrs. Amanda Thomas" in the Mustang Cemetery in northern Grimes County.

[126] "Montgomery County, Texas, Marriage Records, 1838-1894" — Montgomery County Genealogical Society, ***The Herald***, 1977, p. 55; Grammer, Norma Rutledge, ***Marriage Records of Early Texas, 1824-1846***, p. 61.

[127] Grimes County Marriages, 1849-1871, Volumes H-J, Film Number 1006280.

[128] Grimes County Marriages, 1849-1871, Volumes H-J, Film Number 1006280.

[129] Grimes County Marriages, 1849-1871, Volumes H-J, Film Number 1006280.